

DOCUMENTARY EVIDENCE

This involves the principles and rules that govern the admission of documents in evidence. These are mostly contained in ss. 59-99 Evidence Act. We shall look at:

- i. Classification of documents; ii. Proof of execution/ genuineness of a document; iii. Rules of proving contents of documents; iv. Presumptions relating to documents;
- v. Admissibility of extrinsic evidence to prove the contents of a document (parole evidence rule and exceptions).

What is a document?

S.2 (1) of the Evidence Act defines a document as any matter expressed or described upon any substance by means of letters, figures or marks or by more than one of those means, intended to be used or which may be used for the purpose of recording that matter.

Documentary evidence means all documents produced for the inspection of court. Today, tombstones, signposts, buildings, tape recordings are also referred to as documents. According to the Tanzanian Evidence Act, a document is defined as any handwriting, typewriting, printing, Photostat, any and every recording upon any tangible thing, any form of communication or representation by one of those means which may be used for the purpose of recording any matter, provided that such recording is reasonably permanent and readable by sight.

Thus, in our law, the term 'document' means a lot more than its ordinary meaning e.g. it includes signposts, tombstones, photographs and tape recordings. In **Salau Dean v R**, tape recordings were considered documents.

R v Maksud Ali

Facts: A murder was discovered on 27th April 1964. The two appellants voluntarily went to the town hall on 29th April 1964 in the company of a police superintendent and a Pakistani liaison officer. Unknown to them, a microphone had been installed behind a waste paper basket in the room and it was connected to a tape recorder in another room. The police superintendent and the liaison officer left the room and the recorder was connected to the tape recorder was switched on. The appellants engaged in a conversation which was recorded on the tape, but it was found as a fact at the hearing when the prosecution sought to produce the tape as evidence. **Issue:** Whether or not a tape recorder could be admissible as documentary evidence?

Argument: Although throughout, the tape was in custody of police, it was imperfect since in addition to the appellants' voices, street noises were also recorded. Not all that the appellants said was distinguishable. An attempt was made to prepare translations to the police, but it was difficult to do as the dialects used by the appellants was limited to

only a particular area of Pakistan, the same words could have different meaning depending on the context, and before translation into English, the recorded words had to be converted into Urdu which was the official Pakistani language. It was argued that the tape recording was of vital importance since it contained matters tantamount almost to a confession. This tape was played to the appellants before trial and they were offered a chance to have their own witnesses translate it.

Held: Evidence of the tape recording was in the circumstances admissible. The trial judge, having properly warned the jury of the caution with which they should consider the translations which were properly put before the jury, the recorder was in substance, a mechanical eavesdropper therefore the recording was indifferent and the judge had a right to exercise his discretion by not excluding the evidence of the tape and the translators. Court laid out the following principles:

A tape recording is admissible in evidence, provided the accuracy of the recording can be proved and the voices recorded can be properly identified before the evidence is relevant and otherwise admissible. Such evidence should always be regarded with some caution and assessed in light of all the circumstances of each case. There can be question of laying down any exhaustive set of rules by which the admissibility of such evidence should be judged.

Provided that the jury are guided by what they hear from the tape recording and on that they base their ultimate decision, there is no objection to a copy of a transcript of a tape recording properly proved, being put before them.

All these principles were followed in the case of:

SALAU DEAN V R

Facts: The appellant was convicted of corruption and giving false information to a person employed in the public service. The evidence was that the police was informed by the appellant that a certain immigration officer had asked him for money to refrain from prosecuting his friend under the immigration trap. Thereafter the police trap was laid. When the appellant met the immigration officer, he had a long conversation with him. This was tape recorded by various devices and when the trap closed, the appellant and immigration officer were facing each other. The latter was in the possession of money given the former by the police. Their conversation was recorded in Punjabi and translated in English. The immigration officer consistently asserted that the money was thrust into his pocket after prolonged and unsuccessful efforts to accept it as a bribe. After the hearing, before judgment, the magistrate had the tape played up in the privacy of his bedroom, but in the absence of the applicants. The magistrate who was translating was interested in 2 Punjabi words which were translated into English as ‘keep it’ but he held that the expression must be construed as ‘take it.’

Issue: Whether the two tapes were properly admitted by court?

Held: The tape recordings were properly admitted and in so doing, it followed the English case of **R v Maksud** where the admissibility of the tape recordings first arose as an issue. Court held that the opinion of the interpreter on the subsequent playing of the case of the tape recording which was adverse to the appellant and was given the appellant in the absence of the appellant or the advocate. In accepting it, the magistrate committed a fundamental error depriving the appellant not only of the semblance but the absence of a fair trial.

See: **Ug v Everisto Nyanzi**

Classification of documents

There are 3 main types of documents. The purpose of this classification goes to the method of proof.

Attested as opposed to unattested documents

To ‘attest’ means to witness any act or event and with regard to documents, means to witness the signing or execution of a document. It must be witnessed by another person, not the person who signed it.

Under the law, certain documents are required by law to be attested e.g. the wills per the succession Act, otherwise it is void, powers of attorney, employment contracts, land sale, etc. Unattested documents refer to those documents which are not required by the law to be witnessed in order to be valid.

Note: There is always a party or interest to protect, where the law requires attestation. The main difference between those two documents is the method of proof.

Private and public documents

Public documents are those available to public scrutiny or access. According to s. 73, the following are public documents:

Documents forming the acts or records of the acts, e.g. minutes, registers of transactions e.g. marriage certificate etc of the following people:

A sovereign authority e.g. president;

Official bodies and tribunals e.g. URA, Court proceedings;

Public officers, legislature, judiciary and the executive of whether of Uganda or any other part of the common wealth of the republic of Ireland or of a foreign country.

Public documents are also public records of private documents kept in Uganda.

Kafeero v Turyagenda

Facts: There was an agreement which was registered after 7 years.

Held: A document once registered becomes a public document. This makes it easier to prove the authenticity of that document. One may register a document at any point. If the parties do not register their private documents, it does not render the document void and there is no time within which registration must be done.

The two classifications are not mutually exclusive.

See: Khaled Walusimbi v Jamil Kaaya
Uganda v Mukasa Deogratus

Private Documents

S. 74- All documents that are not specified in s.73

See: **Tootal Bodhurst Co. v Ahmed** on how to distinguish between a private and public document.

The significance of this classification centres around the rules governing the admissibility of the different documents e.g. with a public document, you may tender a certified copy thereof and the court will act on it. However, with a private company document, court usually insists on the original.

Primary and secondary documents/ evidence

S.60 – The contents of a document may be proved by either primary or secondary evidence.

S.61 defines primary evidence of a document to mean the document itself produced for the inspection of the court, i.e. primary evidence is the original document itself and the section makes a number of explanations as to the two types:

1. Where a document is executed in several parts, each part is primary evidence of the document. Where a document is executed in counterpart, each counterpart being executed by one or some of the parties only, each counterpart is primary evidence as against the parties executing it.
2. Where a number of documents are all made by one uniform process, as in the case of printing, lithography or photography, each is primary evidence of the contents of the rest; but where they are all copies of a common original, they are not primary evidence of the contents of the original. (e.g. sub agreements towards a main transaction/ agreement e.g. an agreement between Uganda and Japan to set up lights in Wandegaya, that is primary evidence, but if Uganda signs with KCC, that is secondary evidence)
3. Where a number of documents are all made by one uniform process e.g. in the case of printing lithography and photography, each is primary evidence of the contents of the rest, but where they are all copies of a common original, they are not primary evidence of the contents of the original.

DPP v Nathani

Facts: Nathani had been accused and convicted of fraud. He had a licence to sell air tickets to the East African Airways in Zanzibar. He was alleged to have forged air tickets

in mainland Tanzania where he had no licence to sell them. The evidence adduced by prosecution consisted of an official agency list for the IATA, which list was contained in a loose leaf, cyclostyled volume which indicated all agents authorised to sell tickets in Africa. The appellant challenged the administration of this loose leaf cyclostyled volume claiming that it was secondary evidence and that no circumstances had been shown, which warranted its admission.

Held: The official agency list was primary evidence since it was one of a number of documents made by one uniform process, capable of producing many others.

Secondary Evidence s. 62

This means and includes:

- i. certified copies given under the provisions hereafter contained;
- ii. copies made from the original by mechanical processes which in themselves ensure the accuracy of the copy, and copies compared with those copies
- iii. copies made from or compared with the original; (e.g. writing out a copy of the Evidence Act or typing
- iv. counterparts of documents as against the parties who did not execute them
- v. oral accounts of the contents of a document given by some person who has himself or herself seen it.

PROOF OF EXECUTION OF DOCUMENTS

General rule: S. 63- Documents must be proved by primary evidence except in cases mentioned hereafter.

Primary evidence- s.61 - Primary evidence means the document itself produced for the inspection of the court.

The aspect of proof of execution otherwise called proof of genuineness is important because before a document is admitted in evidence, it must be proved to court that it is a genuine document, i.e. it must be shown that it was duly executed by the person(s) who appears on the face of the document as the signatories. This principle was laid down in:

Stamper v Griffen

Held: —No writing can be received in evidence as a genuine writing until it has been proved to be a genuine writing and none, as a forgery, until it has been proved to be a forgery, that a writing, of itself, is not evidence of the one thing or the other; a writing of itself is evidence of nothing and therefore is not, unless accompanied by proof of some sort, admissible as evidence.¶

How can genuineness of a document be proved?

Proof of public documents

Generally, court admits or tenders in a certified copy in proof of such document and its contents.

S. 75 grants a right to every person to access public records and to get certified copies thereof. It says that every public officer, having the custody of the public document which any person has the right to inspect, shall give that person, on demand, a copy of it upon payment of the legal fees therefore, together with a certificate written at the foot of such document. Such certificate shall be dated and subscribed by such officer, with his name and official title. If it requires to be sealed, it shall be sealed and thereafter, it is called a certified copy.

There are a number of presumptions, but s.76 provides that such certified copies as provided for in s.75 may be produced in proof of the contents of public documents of which they purport to be copies.

S.77 has specific methods for the proof of specific public documents. There is a presumption under s.78 that the court shall presume every document purporting to be a certificate, certified copy or other copy, which purports to be duly certified by any officer in Uganda, to be genuine. This, however, is a rebuttable presumption, which is why there is a proviso to s.78: provided that such document is substantially in the form and purports to be executed in the manner directed by law.

Also, under s.78, the court shall presume that the officer by whom any such document, purports to be signed or certified held, when he signed it, the official character which claims in such paper. (Fraud, forgery, etc may be adduced to overturn the presumption.)

Proof of private documents

Private documents required by law to be attested

S. 67 – If a document is required by law to be attested, it shall not be used as evidence until at least one attesting witness has been called for the purpose of proving its execution. The reason behind attestation is to protect the weaker party, as a general rule.

Exceptions:

S.68 provides that if no such attesting witness can be found, it must be proved that the attestation of at least one attesting witness is in his handwriting and that the signature of the person executing the document is in the handwriting of that person;

How is handwriting proven? See s.43; s.45; **Salau Dean v R; Walusimbi v Standard Bank**

S.69 where there is an admission of a party to an attested document that he himself executed the document, then that document shall be sufficient proof of the execution against him;

S.70 If the attesting witness denies or does not recollect the execution of the document, then other evidence may be called to prove the genuineness of that document.

Some of the evidence or methods that may be used to prove execution are: Under s.90, which has been referred to as the 30 year-old rule. The section creates a presumption that the documents purporting or proved to be 30 years old, if produced from custody that the court considers proper for the particular case, then the court may presume that the signature and every other part of that document, which purports to be in the handwriting of any other person, is in that person's handwriting and if it is an attested by the persons by whom it purports to be executed and attested.

Evidence by estoppel – If the person against whom the document is sought to be adduced has been prior conduct, relied on that document, then he is stopped from denying its genuineness.

2. Documents which do not require to be attested

S.71- An attested document not required by law to be attested may be proved as if it were unattested. Thus, it would be proved under s.66 which provides that if a document is alleged to be signed or to have been written wholly or in part, by any person, the signature or the handwriting of the document which is alleged to be in that person's handwriting must be proved to be in his handwriting. (See ss.44 & 45)

S.72, for this purpose, gives court, power to compel any person to provide a sample of his handwriting for purposes of comparison.

Rules for proof of contents of documents

General rule: Documents must be proved by primary evidence, i.e. anyone who wishes to rely on a document must produce and exhibit the original document in court. See s.63

Rationale and historical background of general rule

It has been argued by many authors that the rationale for the rule that documents must be proved by primary evidence is based on the best evidence rule. According to Phipson on evidence, the rule states that the best evidence which the nature of the case permits must be given, e.g. if the original document is easily available, it must be produced, however, if not, court will allow the next best evidence through court procedure. This rule was re-stated in:

Omychund v Barker

Lord Harding J, —The judges and sedges of the law have laid it down that there is but one general rule of evidence, the best that the nature of the case will allow.¶

Brewster v Seawall

Held: Court explained the best evidence rule in regard to the documents:

—The reason why the law requires the original instrument to be produced is that the other evidence is not satisfactory, that where the original instrument is in possession of the part and where it is in his power to produce it, if he does not produce it or take the necessary steps to obtain its production, but resorts to other evidence, the fair presumption is that the original document would not answer his purposes and it would differ from the secondary evidence that the person adduces.¶

The rule is made out in somewhat general terms in the sense that whatever is admitted by court is the best evidence available.

- a. Part of it is convenient to the public e.g. not to bring a whole register from the registry;
- b. It is speedy, bearing in mind that justice delayed is justice denied;
- c. Public policy (state secrets-relevant facts).

According to Wigmore, there are two reasons for the best evidence rule:

—As between the original and a copy, the latter is bound to have inadvertent or wilful errors on the part of the copyist. Secondly, as between the original and oral testimony, there are added risks and errors of recollection due to the difficulty of carrying in memory, literally, the tenor of the document.¶

Wigmore's reasoning was supported in:

Vincent v Cole 1828 ER

Held: —I have always acted most strictly upon the rule that what is in a writing shall be proved only by the writing itself. My experience has taught me the extreme danger of relying on recollections of witnesses as to the contents of written instruments, that they may be so easily mistaken that I think, the purposes of justice require the strict enforcement of the rule.¶

Historical origin of the best evidence rule

It has been said that the law of documentary evidence originated from the primitive way of trial by document where, if a person produced a document, it was viewed almost as sacrosanct and that person would definitely lose and in those days, only the original document became very unfair therefore a number of exceptions to the rule were developed:

1. Equitable remedy called an order for discovery. If the other side has documents which are helpful to your litigation, you apply to court which then orders that other party to discover those documents, i.e. produce them.
- 2.
3. A number of exceptions developed by common law where, if the document is proved to be lost, the other evidence may be admitted.

The above 2 have been codified in the UEA and are mostly found in s.64. The basis of these exceptions is found in s.60- The contents of documents may be proved either by primary or by secondary evidence.

S.64 provides for the particular instances when secondary evidence may be admitted: Secondary evidence may be given of the existence, condition or contents of a document in the following instances:

S.64(a)- Where the original is shown or appears to be in the possession of the person against whom the document is sought to be proved, or of any person legally bound to produce it, but who, after being given notice to do so, does not produce it. This section has 3 main circumstances under each of which, the requirement of the original may be dispensed with:

- i. Where the document is in possession of the adversary who refuses to produce it on notice;
- ii. Where the original is in the possession of a person out of the reach of court and its processes;
- iii. Where the original is in the hands of a person legally bound to produce it but does not do so after being given notice.

Lakmani Ramji v Shejji & sons [1965] EA 125

Facts: The appellant sued for payment for extra work done under a building contract. The respondents' defence was that the parties had discussed the matter and had agreed on a fixed sum for payment for all work done and that later, a cheque was sent to the appellant, with a covering letter which stated that the cheque was in full payment of the appellant's dues. The appellant said that he received the cheque but never saw the letter. The respondent produced a carbon copy of the letter as evidence, which the trial court allowed, but the appellant appealed on the grounds *inter alia*, that the trial court had not properly admitted the carbon copy in evidence.

Held: The carbon copy was properly admitted in accordance with s.64 (a) which must be read with s.65. The latter section provides that in order for one to adduce secondary, it must be shown that the party proposing to give such secondary evidence has previous notice to the party in possession or power over the document or to that person's advocate to produce the document. There is a prescribed form in which the notice

must be if proceedings are done under the Civil Procedure Rules. However, in criminal matters, there is no procedure, however, court requires written notice.

S.64 (b) When it is proved that the contents of the original have been admitted in writing by the person against whom they are sought to be proved or by his representative. In such a case, secondary evidence may be admitted, but it must be the writing of the admission;

S.64(c) contains 3 main circumstances:

i) When the original has been destroyed or lost; ii) Where the original is in the hands of a person not legally bound to produce it and who, after being given to do so, does not produce the document; iii) Where the person seeking to adduce the document cannot, for any other reason, not arising from his own fault, produce the document in reasonable time.

To proceed under the first circumstance, one must prove that the original document existed and show court that a diligent search for the document was conducted, but that one failed to find it. One must also show destruction by e.g. swearing an affidavit as to the burning of a house. This is the most widely used exception to the best evidence rule because it is the most accommodating.

S.64 (d) If the original is of such a nature that it is not easily movable, then secondary evidence may be admissible e.g. if it is a building with certain marks on it, court may accept photographs of marks on such a building as documentary evidence. Alternatively, court may decide to visit the scene of the *locus in quo*;

S.64 (e) Where the original is a public document. See ss.75 & 76;

S.64 (f) Where the original is a document of which a certified copy is permitted by the Act. See s.77;

S.64 (g) When the original consists of numerous accounts or other documents which cannot be conveniently examined in court and the fact to be proved is the general result of the whole collection, e.g. a fraud case, documents showing withdrawals on the account, etc. Here, court accepts a summary of the collection of such books, however, a professional in that area must be brought.

John Baptiste D'sa v R

Facts: The appellants, bank clerks were convicted of fraudulent false accounting and stealing from their employer. At trial, a bank inspector gave evidence for prosecution concerning his searches. On appeal, the admissibility of this evidence was contested, the appellants arguing that neither the original books of accounts referred to by the Inspector were produced in court, nor were copies of them, therefore his evidence was secondary and as such, not admissible.

Held: The evidence was properly admitted under s.63 (g) and it laid down 4 main requirements which must be satisfied for secondary evidence to be admissible under that section:

- i) The witness must be skilled in the examination of the documents in question; ii) The witness must have examined the documents;
 - iii) The documents consist of numerous accounts or other kinds of documents not capable of being conveniently examined in court; iv) The secondary evidence must be for the purpose of proving the general result of the whole collection of books.
- In this case, all the circumstances were fulfilled.

S.64 (g) has an element of convenience, is tailored to avoid unnecessary delay and court may not have the professional skills to examine the books therefore a professional is brought in to help.

Brown v R [1957] EA 371 (Who is a person skilled in the execution of documents?)

THE EVIDENCE BANKERS BOOKS ACT cap7

This Act creates privileges in favour of banks and their books in as far as giving evidence in Court is concerned.

What are the bankers' books with privileges?

These include ledgers, day books, cash books, accounts books and all other books used in the ordinary business of the bank.

See s.2 for the definition of a bank.

S.3 provides the mode of proof of entries in bankers' books. There is no need to bring an original document, but you may produce a copy of the banker's book. However, it must fulfil certain requirements:

1. It must be verified as a true copy of the original;
2. S.4 of this Act requires that an officer of a bank must prove that the bank in which the entry is found was one of the ordinary books of the bank and that the entry in issue was made in the ordinary course of business.

Under s.6, special privileges are created for bankers. A banker is not compellable to produce documents in his books or to appear as a witness about their contents in a case to which he is not a party unless the court orders him to do so for a **special cause**.

See ss. 63(a), (c) and (g) of the Evidence Act (Special cause: A person skilled in examination)

With documentary evidence, if you feel that the other party is relying on documentary evidence, court will admit it if you do not refute this as it would imply acquiescence; or that you concur or wish to use the document yourself. This matter was considered in:

Popatalal v Nanji

Held: If there is no objection to the admission of secondary evidence, the party failing to object is presumed to have waived the right to object and cannot later object to the document having been admitted.

PRESUMPTIONS PERTAINING TO DOCUMENTS

A presumption is an inference which the court makes, of the existence or non-existence of certain facts.

There are both rebuttable and irrebuttable presumptions. If it is the former, evidence may be adduced, however, where it is the latter, no evidence is adducible in as far as that presumption is concerned.

S.4(1)-Whenever it is provided by the Act that the court may presume a fact, it may either regard such fact as proved unless and until it is disproved or it may call for proof thereof.

However, in s.4(2), where it is directed by the Act that Court shall presume a fact, then the court shall regard such fact as proved unless and until it is disproved. (Note the use of mandatory language.)

S. 4(3)- If one fact is declared conclusive proof of another and if the first fact has been proved, then the court shall presume that the other fact has been proved. For example a decree absolute in a divorce case is conclusive proof as to the end of the marriage.

Particular presumptions in documentary evidence

S.78 is on the genuineness of documents;

S.79 Presumption as to document produced as record of evidence.

R v Mitha

Facts: The accused was charged with perjury and as part of the evidence, prosecution adduced the trial court's record of proceedings as the main proof of false statements allegedly made by the accused. The accused challenged the admission as being improper, i.e. that although it was adduced, he did not say it and the record was defective.

Held: Court may presume that the evidence recorded was that given and used against the accused.

S.80- Presumptions as to the genuineness of gazettes, newspapers, Acts of Parliament, etc.

S.81- Presumptions as to documents admissible in the UK and Ireland. These are genuine and admissible in Ugandan courts. If documents would be admissible in those countries without proof or authentication, then Ugandan courts will admit them too. All one has to prove is that before the UK and Irish courts, they are admissible without proof or authentication.

Venn v Venn

Facts: A document was sworn before a Commissioner of Oaths in England and it was sought to be used in Kenya.

Issue: Whether the document was admissible in Kenyan courts?

Held: Since it was admissible in the UK without proof, it was admissible in Kenya.

See: **Tootal Bodhurst Co. v Ahmed**

S.82- Presumptions as to maps or plans made by the authority of Government. Court will presume that they are accurately made and therefore admit them as genuine.

Magoti s/o Matofali v R

Facts: This concerned sketch maps drawn by policemen.

Issue: Whether or not they came under the presumption of the equivalent of s.82:

Held: A sketch plan drawn by a policeman must be proved to be accurate.

Rationale: The policemen were not experts in map drawing. The documents must therefore be proved to be accurate and in any case, a policeman is not authorised by Government to draw maps.

S.90- Documents that are 30 years old are presumed to be genuine.

S.89- Court shall presume that every document called for and not produced after notice to produce is genuine, i.e. if it required, a stamp attestation, it was well done.

A presumption with regard to dispositions. A disposition is where a witness for whatever reason, cannot be present in court, but instead sends written information. Court may decide that a disposition be made, i.e. that a group is sent out to record what

that person says e.g. affidavit, people to cross examine, render oath and that evidence is brought back as a disposition. It is presumed to be genuine without calling the recorder or the witness to prove whatever is in the disposition. Court also would not call the commissioner for oaths to prove the contents.

See **Magoti s/o Matofali v R** here a disposition was used to impeach the credibility of a witness. **Held.** It was unnecessary to call the person who recorded the disposition in order to adduce its evidence.

See other presumptions in ss. 83-88

EXCLUSION OF ORAL BY DOCUMENTARY EVIDENCE

This refers to the admissibility of extrinsic evidence to prove or vary the terms of a document. The issue is always- whether or not you can admit other evidence to affect what is already contained in that other document?

The general rule is that where there is a written document, any other evidence to substitute or to vary or contradict the terms of the document is not admissible.

This principle mainly applies in 2 situations:

If you have a contract reduced to writing, in which case, the terms of that contract must be proved by reference to the document itself. No oral evidence to vary or contradict the terms is admissible. See **Kilonzo s/o Kanyanya v Purshotam brothers** court held that when the terms of the case have been reduced to a document no evidence is receivable as to the nature of the case except the document itself.

With regard to transactions which are required by law to be in writing e.g. a number of statutes require that certain transactions must be in writing, in which case, the transaction can only be proved by the writing. Under the law of contract, contracts of guarantee, contracts of money lending under the money Lenders Act, etc must be proved by adducing the written contract itself.

See:

Damodar Jamada v Noor Mohammed (money lending) **Choitram v Lazar** (sale of goods)

THE PAROLE EVIDENCE RULE (SS. 91-100 UEA)

This is the rule that excludes oral evidence by documentary evidence. According to s.91, when the terms of a contract, grant or any other disposition of property have been reduced to the form of a document and in all cases in which any matter is required by law to be in the form of a document, no evidence shall be given in proof of the terms

of such contract, grant or disposition of property except the document itself. See the other exceptions accepted under the section.

S.92- When the terms of any such contract, grant or disposition of property have been proved in accordance with s.91, no evidence of any oral agreement or statement shall be admitted as between the parties for the purpose of varying, contradicting, adding to or subtracting from its terms. S.92 thus sets out the rule.

Both sections in effect, prohibit one from adducing oral evidence to the affect that the terms of a contract, grant or disposition of property. However, if oral evidence does not affect the terms and conditions, then it may be adducible e.g. dates, time if they are not of essence to the contract.

Folkes v Tharkar

Facts: The appellant sued a company and the respondents as guarantors, for a sum of money in respect of 2 consignments of goods delivered to the company on April 18th and May 11th 1956 respectively. It was alleged that the respondents who were 2 of the directors of the company had, on 18th April guaranteed payment of all the moneys due by the company for the goods delivered to them by the appellant and they promised to sign a written guarantee within a few days and that such written guarantee was delivered on May 22nd, bearing the same date. At the trial, the appellant sought to establish that the written guarantee had been signed, not on 22nd May but in April before the delivery of the first consignment of goods and that it was preceded by an oral guarantee.

Trial Court holding: Such evidence was inadmissible. On appeal against this, the appellant argued that the evidence was to prove that a written guarantee wasn't signed before May 22nd. It was contended for the appellant that the written guarantee covered both past and future credits and that the consideration for guarantee was a promise for future credit.

Issue: Whether oral evidence was admissible to prove that the guarantee was signed before the date it bore?

Held: The date was not a term of the contract therefore oral evidence could be admitted to prove that the date appearing on the document was not correct.

Rationale for the rule:

It is based on the agreement that parties have made a contract of their own free will and that the court's only duty is to enforce the said contract. It is based on the sanctity of the contract. (i.e. a contract can only come in to interpret and enforce the terms the

parties have contracted on.) The best evidence rule- The document itself is the best evidence of what the parties intended.

Exceptions to the parole evidence rule

S.91- When a public officer is required by law to be appointed in writing, if it is shown that any particular person has acted as such officer, then the writing by which he was appointed, needn't be proved, e.g. a company registrar who must be appointed in writing. If such person is sick or not around, if it can be shown that another was acting as such, written evidence does not have to be adduced.

In the proof of wills (s.91) - If a will has been admitted to probate in Uganda, it may be proved by the probate. In applying for probate, you must attach the will, prove the genuineness of the will in court after which, if you are successful, court grants you the probate. If you then need to prove the will elsewhere, the grant of probate is evidence of the genuineness of the will and you needn't prove it again.

The rest of the exceptions are embodied in s.92- provisos a-f:

S.92(a)- Any fact may be proved which would invalidate any document, or which would entitle any person to any decree or order relating thereto, such as fraud, intimidation, illegality, want of due execution, want of capacity in any contracting party, want or failure of consideration or mistake in fact or law.

Patel v Patel

Facts: This was a suit on a bond. The defendant argued that the contract was in fact a moneylending contract and since the plaintiff was not licensed as a money-lender as required by law, then the contract was void. The plaintiffs contended that the defendants' oral evidence was inadmissible.

Held: The facts invalidating a contract may be proved by oral evidence. Money-lending transactions by an unlicensed money-lender are illegal and void therefore evidence was admissible to prove that the consideration recited in the bond was unlawful and the bond therefore void.

Twentsche Overseas Trading Co. v Jamal Kanji

Facts: The respondents entered into a Hire Purchase agreement for a van. When the respondents wanted to transfer it into their names, the appellants refused. The matter went to court and the appellants adduced oral evidence to show that the respondent had not paid the full value for the car. On appeal:

Issue: Whether oral evidence was admissible in light of the written contract and receipt?

Held: It was open to the appellants to show what the true consideration was and whether there had been a failure of consideration. The evidence adduced by the

appellants was an explanation of the conditional nature of the receipt and was admissible. S. 92 prevents the admission of oral evidence for the purpose of contradicting or varying the terms of a contract, but does not prevent a party to a contract from claiming that there was no consideration or that the consideration rendered was different from that described in the contract, or that it was agreed to be paid in a different manner.

Uganda Timber Produce Co. Ltd. v Registered Trustees (Oral evidence pertaining to mistake)

(b) the existence of any separate oral agreement as to any matter on which a document is **silent**, and which is not **inconsistent** with its terms, may be proved.

Hansen and Soehne v G K Jetha Ltd

The document relied upon as being the contract of guarantee was a letter to the plaintiffs dated October 8, 1958, the introductory paragraph of which began —We, the undersigned. At the foot of the letter were the signatures of the three alleged sureties and an empty space for a fourth signature, namely, —Fatmakhanu, widow of the late G. K. Jethal. The evidence before the court was that the draft letter of guarantee was handed to the three respondents in order that they should sign, procure the signature of the fourth surety and return the document to the decreeholder. The document was returned with the signatures of only three sureties who at the time stated that their signatures alone were sufficient security.

HELD

the letter of October 8, 1958, was silent upon the question whether the signatures of the four sureties was a condition of the guarantee and therefore oral evidence was admissible under the proviso to s. 92 of the Indian Evidence Act, 1872.

(iii) the oral statement of the three sureties that their signatures alone were sufficient security was not a subsequent modification of the guarantee but was a collateral, oral term.

(iv) even accepting the sureties' contention that they signed the document on the basis that the fourth surety would sign, that was not the basis upon which they communicated their acceptance by delivering the signed document and so completing the contract of guarantee.

S.92 (c)- the existence of any oral agreement constituting a condition precedent for the coming into effect of a contract is admissible. This was considered in the case of:

Ghai v Mandal

Facts: This case concerned a post-dated cheque which the respondents gave the appellant. The parties had agreed orally that the cheque would not be cashed until the firm for which the respondent worked paid certain monies into his account. The firm went bankrupt and did not pay the monies into the respondent's account. The

respondent then stopped payment of the cheque due to lack of funds, but the appellants presented the cheque which was dishonoured and they sued the respondent on it. The respondent tried to adduce oral evidence of the condition that had been agreed upon, that the cheque would not be presented for payment until after his firm had paid him. The appellants objected to the oral evidence arguing that the cheque contained all their contract.

Held: The evidence tendered in proof of the oral agreement was admissible. It was tendered to establish that it was the intention of the parties that the cheque wasn't to be operative at all until after a certain event had happened. Court stated the following principle:

—When, at the time of a written contract being entered into, it is orally agreed between the parties that the written agreement shall not be of any force or validity until some condition precedent has been performed, parole evidence of such oral agreement is admissible to show that the condition had not been performed and consequently that the written contract has not become binding and that until the condition is performed, there is in fact, no written agreement at all.¶

S.92 (d)- The existence of a separate and distinct, subsequent oral agreement to rescind or modify any contract is admissible, provided it is not a contract, grant or disposition of property which is required by law to be in writing.

Ishakiya v Jusub

Held: Where it is to be in writing, then it can only be modified in writing thus the exception in s.92 (d) does not apply.

The plaintiff sued for unpaid rent. He relied on a written agreement dated March 29, 1955 insofar as the letting was concerned and pleaded a subsequent oral agreement as regards the amount of rent to be paid. The defendant set up the written agreement stipulating that the rent should be the

—standard rent¶ as assessed by the Rent Control Board. The agreement was entitled —Main Terms of Tenancy Agreement Entered Into . . .¶ and while it provided that the rental was to be the standard rent as assessed by the Rent Control Board it contained no words of demise of the premises. At the trial the plaintiff led evidence of the parole agreement. Counsel for the defendant objected on the ground that as the agreement in question was required by law to be in writing it was ineffectual to pass any estate or interest by virtue of s. 51 of the Registration of Titles Ordinance (Cap. 123) (U) and relying on s. 91 of the Evidence Ordinance (U) argued that the subsequent oral agreement could not be proved

Held

- (i) an agreement for lease need not by law be in writing for the purposes of proviso 4 to s. 91 of the Evidence Ordinance

- (ii) the tenancy agreement was an agreement for lease and in the circumstances there was nothing in law to prevent the parties, before rent was paid, from agreeing by another agreement that the rent should be a fixed sum.
- (iii) evidence of the subsequent parol agreement was admissible.
- (iv) the defendant had entered into possession of the premises in question by virtue of an agreement for lease and had paid rent in accordance with a later parol agreement

S.92(e)- The existence or any usage or custom to which a particular type of contract or transaction is usually subject, is admissible only if allowing it would not be repugnant to or inconsistent with the express terms of a contract.

Brown v Byrne

This case briefly says that the reason for the exception is that such evidence of custom and usage is admissible in order to get at the true meaning of what the parties agreed on in the document.

S.92 (f) - Any fact may be proved which shows in what manner the language of the document is related to the existing facts. This is another rule of interpretation to help court establish what the parties intended.

Ss.93-100 – contain rules for the interpretation of documents by the court, the most important being s.93 which is in concert with ss91 and 92. It provides that where a contract is, on its face vague, ambiguous, defective on the face of it, the court may not resort to extrinsic aids to interpret its meaning, i.e. evidence may not be given of facts which would show its meaning. See ss. 91-92.

S.94- When the language used in the document is plain in itself and if it applies accurately to the existing facts, evidence may not be given to show that it was not meant to apply to such facts. Note the use of ‘may’ e.g. s. 92(a) on mistake.

S.95- A document which is not meaningful. If it is plain on its face but it is not meaningful with reference to the existing facts, evidence may be given to show that it was used in certain terms. S.96. Evidence as to application of language which can apply to one only of several persons. When the facts are such that the language used might have been meant to apply to any one, and could not have been meant to apply to more than one, of several persons or things, evidence may be given of facts which show which of those persons or things it was intended to apply to.

97. Evidence as to application of language to one of two sets of facts, to neither of which the whole correctly applies.

When the language used applies partly to one set of existing facts, and partly to another set of existing facts, but the whole of it does not apply correctly to either, evidence may be given to show to which of the two it was meant to apply.

S.98- Evidence may be given to show the meaning of illegible or not commonly intelligible characters of foreign, obsolete, technical, local and provincial expressions of abbreviations and of words used in a peculiar sense.

S.99- The persons who are not party to a document or their representatives in interest may give evidence of any facts tending to show a contemporaneous agreement varying the terms of a document e.g. where 3 parties sign an agreement.

S.100- Nothing in ss.91-99 shall affect the provisions of the Succession Act as to the construction of wills, i.e. those sections do not apply to wills.

JUDICIAL NOTICE

The general rule is that all facts in issue and any relevant facts must be proved in evidence. This rule is commonly found in all oral testimonies, documentary evidence as admissions and judicial notice. Admissions are dealt with In section.57.

Facts admitted need not be proved.

No fact need be proved in any proceeding which the parties to the proceeding or their agents agree to admit at the hearing, or which, before the hearing, they agree to admit by any writing under their hands, or which by any rule of pleading in force at the time they are deemed to have admitted by their pleadings; except that the court may, in its discretion, require the facts admitted to be proved otherwise than by such admissions.

Oral evidence.

Judicial notice refers to facts that a judicial officer can be called upon to receive and act upon either for his or her own general knowledge of them or from inquiries to be made by that judicial officer for his own information from sources to which it proper for him to refer.

Common Wealth shipping representative V P and O branch services 1923 AC P191,212 Certain facts are beyond descript, or are so notorious or of such common knowledge that there is no requirement for specific proof and they are not open evidence in rebuttal.

Judicial notice is a time saving aid

It also helps in ensuring consistency so that matters which common sense demands that they should be treated in the same way are actually treated that way

Judicial notice sometimes is based on statutes and is therefore mandatory in that sense. in other cases it is taken after due inquiry and this is generally for matters that are not very notorious. **S.55.**

Facts judicially noticeable need not be proved.

No fact of which the court will take judicial notice need be proved.

In other words, once judicial notice has been taken that fact is considered to have been proved.

Courts have taken judicial notice of number of things.

In **Re Green vine CollegeLtd** judicial notice was taken of fact that Uganda private companies are notorious for not maintaining company records like the register of members. In **Preston Jones v Preston Jones**, judicial notice was taken of the fact the duration of the normal human gestation is nine months and not one year in **Huth v Huth**(1915) judicial notice was taken of the fact that a post card is a kind of communication which may be read by anyone

In **woolf v woolf** 1931 P134 judicial notice was taken that a man and a woman sharing a bed are likely to have sexual intercourse

Thiakar V Richardson The request was rejected to take judicial notice that husbands read their wives' letters

The judicial officer may consult sources, works of reference, reports or sometimes may hear from individuals who have knowledge. But the judicial officer is not permitted to take into consideration matters that come into his or her attention by virtue of private personal knowledge.

For, he cannot contradict or substitute evidence for personal private knowledge.

Witherall v Harrison 1976 V2 weekly law it was held that a Justice with specialized knowledge of the circumstances forming the background of a particular case can draw on that specialised knowledge for purpose of interpreting the evidence. On this case a member of the bench was a medical practitioner who advised other judges basing on his knowledge to dismiss the evidence.

Broadly in Uganda judicial notice take into consideration-
Legal matter, Constitutional matters and Customary matters

56.

Facts of which court must take judicial notice.

(1) The court shall take judicial notice of the following facts—

(a) all Acts and Ordinances enacted or hereafter to be enacted, and all Acts of Parliament of the

United Kingdom now or heretofore in force in Uganda;

(b) All Orders in Council, laws, statutory instruments or subsidiary legislation now or heretofore in force, or hereafter to be in force, in any part of Uganda. **Saleh Muhammad v R**; the applicant was found in possession of four sacks of sugar in a

certain place. The magistrate took judicial notice that the applicant was found with sugar in a prohibited place.

On appeal; Court held that the correct application of S.57 of the Indian evidence act which applies in Kenya is that court must take judicial notice of all ordinances and regulations enacted in Kenya

A and B deal with enactment of written law.

(c) The course of proceeding of Parliament, and of the councils or other authorities for the purpose of making laws and regulations established under any law For the time being relating thereto, they are also taken judicial notice of.

(d) The accession and the sign manual of the Head of the Commonwealth;

e) the seals of all the courts of Uganda duly established; all seals of which the English courts take judicial notice; the seals of courts of admiralty and maritime jurisdiction and of notaries public, and all seals which any person is authorized to use by any Act of Parliament or other written law; the most common example is the registrar of title Sealing titles.

(f) The accession to office, names, titles, functions and signatures of the persons filling for the time being any public office in any part of Uganda, if the fact of their appointment to that office is notified in the Gazette;

(g) the existence, title and national flag of every State or Sovereign recognized by the Government;

Duff development co LTD v Kelantan government and another 1924) 2 ALL ER168 The Kelantan government contracted entered in to an agreement with a trading company, by which the trading company was granted rights of mining, cutting timber and road making in the state. A clause in the agreement provided that any dispute arising under the agreement should be referred to the arbitration and that clause should be deemed to submission within the arbitration acts. And disputes arose and company on going to court and the state pleaded immunity as a defense for not being taken to court.

Held; It's a practice of courts when a question is raised relating to the rights of a foreign government immunity from legal process in this country to take judicial notice of the sovereignty of a state

(h) The divisions of time, the geographical divisions of the world, and public festivals, fasts and holidays notified in the Gazette;

- (i) The territories of the Commonwealth;
- (j) The commencement, continuance and termination of hostilities between the Government and any other State or body of persons;
- (k) The names of the members and officers of the court, and of their deputies and subordinate officers and assistants, and also of all officers acting in execution of its process, and of all advocates and other persons authorised by law to appear or act before it;
- (l) The rule of the road, on land or at sea.

However the court may require or resort to assistance by consulting appropriate books or document so of reference. This assistance may be solved in response to the matters talked about or in regard to matters of public history, literature, science or Art. The court is called upon to take judicial notice of any fact, it may refuse to do so until the person calling upon it produces any book or document that it may consider necessary to enable it to do so- S.56.-3

Singh v R

The appellant had been convicted on circumstantial evidence of the murder by strangulation of his wife to whom he had apparently been happily married for less than one year. On appeal much of the argument concerned the medical evidence and counsel for the appellant sought to rely on passages from textbooks on medical jurisprudence to the citation of which Crown counsel objected. **Held –**

(i) although s. 45, s. 57 and s. 60 of the Indian Evidence Act authorise reference by the court to certain textbooks and treatises, the proper function of such works is to assist the court to a right understanding of and conclusion upon the evidence given; when passages from such works are relied upon, they should be put to the expert witnesses for their opinions.

(ii) in the instant case the circumstantial evidence did not eliminate as a reasonable hypothesis that the appellant killed his wife by an unlawful assault but without the intent necessary to constitute legal malice.

Appeal allowed. Conviction of murder quashed and sentence set aside; conviction of manslaughter substituted. Appellant sentenced to eight years imprisonment.

—In all these cases and also on matters of public history, literature, science or art, the court may resort for its aid to appropriate books or documents of reference.

We do not think that this section, taken alone, would assist the appellant's argument. As is stated in the commentary upon it in Sarkar on Evidence (9th Edn.), p. 492:

—But obviously, it cannot be meant that the court is to take judicial notice of all facts mentioned in all books of public history, literature, etc. Only books of accepted or

recognised authority may be resorted to and for obtaining information regarding only undisputed and notorious facts.¶ On page 499 it is said:

—S. 57 however does not intend to make books or documents of reference themselves evidence. What is obviously meant is that the court may use the books of reference in appraising the evidence given and coming to a right understanding the conclusion upon it. It has been held that the court can dispense with evidence only of what may be regarded as notorious facts of public history.¶

The section is not intended, in our opinion, to enable or require a court, to solve for itself by reference to textbooks, difficult and perhaps controversial questions in medical or other science. The conclusion seems to be that books of reference may be used by the court on matters (inter alia) of science to aid it in coming to a right understanding of and conclusion upon the evidence given, while treatises may be referred to in order to ascertain the opinions of experts who cannot be called, and the grounds on which such opinions are held.

Hajji Muhammad Bagalaaliwo v AG

The plaintiff claimed that his inability to commence an action against the attorney general within the prescribed time was due to the fact that there was a war going on which had resulted in Masaka town where he claimed to have been being cut off from the rest of Uganda, as a result he claimed that he could not contact his lawyers were in Kampala to instruct them file a suit. The AG raised preliminary objection that his suit was time barred, the same was upheld and held that the court may refuse to take judicial notice of certain matters until the person requesting it to do so produces any book or document that the court may deem necessary to enable it to do so. In this case whereas it was a notorious fact that courts could take judicial notice that some parts of Uganda were cut off during the guerilla war, no evidence had been provided to prove that the plaintiff had been in Masaka at the time and therefore under disability. The court in fact took judicial notice that there was a war, but it could not judicially notice that the plaintiff was in Masaka.

Sam Osingida and anor v AG1993) KALR 102

An NRA soldier during and independence anniversary was denied attending the party because there was a regulation not allowing soldiers to mix with civilians. He opened fire and killed the deceased and injured others.

Court took judicial notice of the fact that at the material time the area around Bukedea center were under a state of insurgency caused by anti government rebels and because of this, civilians were not supposed to coexist and drink with soldiers.

In Bruno **Kiwuuwa v Ivan Sserunkuma** and another EAC judicial notice was taken of the fusion of what it is religious and customary as obtained in Uganda in celebration of marriages under the marriage Act. This case was involving individuals who obtained marriage yet belonging to the same clan which in Buganda not customarily permissible. The couples argued that they were saved and not concerned by culture, the father succeeded in action to put an injunction to the marriage.

Munywero v Uganda

The judge took judicial notice of the fact that original documents of academic papers are normally not placed on personal records. However, copies of the, are always supplied on appointment and placed on the candidate's file

Customary matters.

General customs may be taken judicial notice of and these vary from community to community. However the constitution requires that the customs and practices that may be adopted are not repugnant to good conscience or against its provisions of the law-

UEB v JM musoke supreme court No; 30

The child had been electrocuted through what appeared to be the negligence of UEB which had left some wires, the parents sued UEB for damages and in the course of the damages, the judge held that African children are educated at a very high cost and therefore assist in taking care of their parents and their siblings and court took judicial notice of the fact that children are expected to assist their parents and siblings. But on appeal the Supreme Court found that such a custom did not exist as there was no evidence that all African children when educated will assist their parents in the manner expected or will be required to assist. Court found that it was wrong for the trial court to have taken judicial notice of that alleged custom

Kimani V Gikanga 1965 EA P37 held;

Where African customary law is neither notorious nor documented it must be established for the court's guidance by the party intending to rely on it, and this the appellant had failed to do. As a matter of practice and convenience in civil cases, the relevant customary law if it is incapable of being judicially noticed should be proved by evidence or expert opinions adduced by the parties. The Evidence Act of Kenya did not cast the burden of establishing the customary law on the court through assessors. To do so would deprive the parties of an opportunity to test the assessors views by cross-examination or further evidence;
Appeal dismissed

WITNESSES

It deals with competence, and compellability of witnesses. Competence refers to the capacity of a person to give evidence in court. It is important because there are certain categories of people who are not competent. E.g. lunatics, very young children, extremely old people

Compellability; Refers to whether the person can be subjected to the compulsory process of the court. This is important because some categories of people are not compellable. E.g. under the Uganda laws the sitting president is not compellable and also diplomats who enjoy certain immunity.

However it is important to note that there is no required number of witnesses to prove any fact. Sec.133 of the Evidence Act.

In olden days non Christians and Atheists' evidence would not be received because of the requirement that evidence must be based on the gospel. This was modified by the case law.

Particularly the case of *Onyiah v Baker* 1745

Current law permits oaths for all witnesses e.g. the Divorce Act cap 19 of the law of Uganda provides the form and the manner in which the oath should be taken S.5 The general rule is contained in S.117.

Who may testify?

All persons shall be competent to testify unless the court considers that they are prevented from understanding the questions put to them, or from giving rational answers to those questions by tender years, extreme old age, and disease whether of body or mind, or any other cause of the same kind.

Explanation.—a lunatic is not incompetent to testify, unless he or she is prevented by his or her lunacy from understanding the questions put to him or her and giving rational answers to them. There are specific categories of witnesses.

1. Dumb witnesses;

Section 118- provides a witness who is unable to speak may give his or her evidence in any other manner in which he or she can make it intelligible as by writings or signs but the writings or signs must be done in open court it also says that evidence provided in this manner is deemed to be oral evidence. In the case

Hamisi V. R

This was a trial for murder and the only eye witness was the daughter of the deceased who was a deaf mute. She came to court with a relative who claimed that she could receive information from the witnesses sign and noises. The Judge overruled the evidence. On Appeal, it was held that such a person is a competent witness if he or she can be made to understand the nature of an oath and if intelligence can be conveyed to and from him/her by means of signs. This case is an authority for the proposition that

even deaf and dumb are competent witnesses if the evidence can be communicated to them through signs.

Further held that the witness was a competent witness if it could be shown that she was able to communicate in an intelligible way or that she could follow the proceedings but that in this particular case her evidence was properly disallowed because the method of interpretation being proposed was too *crude*.

2. Judicial officers;

Judicial officers are generally not compellable except by special order of the court to which they are subordinate. This relates to answering questions as to their conduct in court or as to anything that comes to their knowledge in the course of conducting court proceedings or matters that occur in court while conducting court proceedings. That does not mean that judicial officers are not compellable, so where they were not conducting or acting in the course proceedings they are treated as any ordinary person. S.119 of the evidence act.

3. Accused persons;

The general rule is that an accused person is a competent witness for the defense but cannot be compelled to give evidence in his or her own trial. When the accused chooses to give evidence he or she has three options.

- I. Give evidence on oath sworn evidence. Here there is cross examination.
- II. Give it not on oath, unsworn evidence. [No cross examination].
- III. Keep quiet. Say nothing.

The accused person is not compellable as a witness at all, and in practice the accused is not a competent witness for the prosecution because both sides are always at cross purposes. He is competent for the defense *R v Ndara* 1945 V12 EAC p24. This case is reported solely on the observation of court.

4. Accomplices

These are dealt with under S132, where it is provided that an accomplice shall be a competent witness against an accused person and the conviction is not equal merely because it is based upon the uncorroborated evidence of an accomplice. As a matter of judicial practice however, the evidence of accomplices requires corroboration and court insists on corroboration because it is considered to be evidence of the weakest kind, however if the court carefully directs itself about the danger of proceeding on that uncorroborated evidence, may do so;

Gathingi V. R 1956 23 EAC p597, the accomplice's evidence was rejected because of the fear that the accomplice might disregard the value of an oath because he gave evidence on the expectation that he. The accomplice is a competent witness against the accused person

MORJARIA V R

The driver of a lorry offered to sell the goods on it which did not belong to him to the appellant.

The appellant accepted, paid the driver and took delivery of the goods by having them off loaded at different places. The full facts are set out in the judgment of the court.

The appellant was convicted of handling stolen goods. On second appeal it was contended for him that it had to be proved that he had received the goods otherwise than in the course of stealing and that this phrase covered more than the act of theft, that the driver's offer to sell was only an overt act of conspiracy to steal and not fraudulent conversion amounting to theft, that the goods offered for sale were not identifiable, that there were separate acts of receiving

held

- (v) the High Court was wrong in saying that the magistrate would have convicted on the uncorroborated accomplice evidence as he had not said so;
- (vi) the accomplice's complicity was mild and passive and it did not therefore require the same corroboration as that of an active participant (*R. v. Wanjerwa*(2) followed);
- (vii) There was in fact corroboration.

Appeal dismissed.

5. Spouses

In criminal proceedings a husband or wife is a competent but not a compellable witness for the prosecution. Notwithstanding the above, a spouse shall be a competent and compellable witness for the defense. The words husband or wife, mean a husband or wife of the subsisting marriage, which is recognized as such under written law or customary law

Before 1971, because of the case of **R v Amkeyo**, customary marriages were not recognized as marriages. However this principle was overruled in *Alai V Uganda* where customary marriages were recognized. The rationale for this principle is to protect the confidentiality that is deemed to exist in the relationship of marriage. Therefore confidential relationship is supposed to be privileged.

Uganda V Peter Kato and others 1976 HCB 204. The wife of the accused was allowed to give evidence against him on a charge of murder. She had lived with him for three years and they had children together but they had not married customarily as the accused had not yet paid dowry.

These principles have been selectively applied by the English courts e.g. in **R V Lampworth 1931 1KB** the husband was accused of inflicting grievous bodily harm on his wife, the wife was called to testify but she refused. It was held that where a husband

is indicted for inflicting harm to his wife, she is a compellable witness for both the prosecution and for the defense, where she refuses she will be charged for the contempt of court. However in *Hoskins v Metropolitan Police*, [House of Lords] a wife was unwilling to testify against her husband. The House of Lords held that she was not compelled even though she was the one who had been wronged

As far as civil cases are concerned. Under S. 121 of the Evidence Act, spouses if parties to a suit are both competent and compellable witnesses. S. 34 of the Divorce Act, and 393 of the Penal Code.

In R V. Khandika

The accused who was married to two wives was charged with the murder of one of them. The other wife gave evidence for the prosecution.

Held – on a charge affecting the person of one wife another wife is a competent and compellable witness for the prosecution against her husband.

Order accordingly.

Obiter

—I see no reason why a wife is not compellable to testify against her husband in respect of an act done against any of her children by that man but is not compellable to testify against her husband if the act happens to be done against any of the children of her co-wife. Where a husband commits an offence e.g. an assault against a member of his family such as one of his wives or any of their children, I can see no reason in principle for not making any of his wives who witnessed the incident a compellable witness. Order accordingly.

Hoskin V. Metropolitan

The husband here was charged with inflicting personal injury on his wife. The injury was inflicted while the woman was cohabiting with the defendant. The woman was reluctant to testify and the question was whether she was compellable. The court held that as the common law wife was incompetent to testify against her husband, she cannot be compelled to testify unless a statute makes a special provision for compulsion. (S. 127(3)) inflicting personal injury.

R V. Blanchard

In the Blanchard case the accused was charged with committing buggery on his wife, the issue arose as to whether the wife was a competent witness, the court held yes because the offence involved injury to her person (127(3)). The question has arisen as to why you exclude spouse evidence in some and allow it in others. Some people argue

that spouses are one and should not testify against one another and its only in instances where it would be impossible to sustain a case if their evidence was not available.

6. Children of tender years

As stated under S.117, tender age may be caused by the incompetency. The key question is that whether because of the age of that child, that child cannot understand the question or cannot give rational answers to those questions. The phrase child of tender years is not defined in the act, but case law has provided an acceptable working definition. This was said In the case of **kibangenyi Arap kolil v R** to refer to children of the apparent age of 14 years and below. The decision of whether the child is of tender age or not depends on the good sense of the court, a matter left to the court to determine

Kibangenyi Arap Kolil V R

The appellant was convicted by the Supreme Court of the murder of his cousin. Evidence of the killing was given by the eye-witness testimony, upon affirmation, of the appellant's two sons whose ages the trial judge estimated at from twelve to fourteen years and nine to ten years respectively. The manner of killing was corroborated by medical evidence, but there was no corroboration by any other witness, nor by any circumstance sufficient to raise more than very slight suspicion, of the boys' evidence of the identity of the deceased's assailant. Throughout the trial it seems to have been assumed both by defense counsel and the court that the murderer was the appellant and the only defense raised was that of insanity. The killing was at no time admitted by the appellant; in fact in a cautioned statement in answer to the charge he denied it, while in his unsworn statement from the dock he did not admit it but said —At this time I was sick and did not know what I was doing . . . I was told I had killed someone. When I was told this I told them I did not know what I was doing. The trial judge rejected the defense of legal insanity and convicted the appellant. At the hearing of the appeal Crown counsel intimated that he felt unable to support the conviction based as it was solely on the evidence of the two boys, for two reasons, namely: (a) the court had failed to satisfy itself, before they testified, whether or not they understood the nature of an oath or affirmation and (b) the court had failed to warn itself or the assessors of the danger of convicting on their uncorroborated testimony. **Held –**

(i) since the evidence of the two boys was of so vital a nature the court could not say that the trial judge's failure to comply with the requirements of s. 19 (1) of the Oaths and Statutory Declarations Ordinance was one which could have occasioned no miscarriage of justice; (ii) the failure of the trial judge to warn either himself or the assessors of the danger of convicting upon the evidence of the two boys in view of the absence of corroboration and any admission by the appellant was an additional ground for allowing the appeal.

Per curiam— ‘There is no definition in the Oaths and Statutory Declarations Ordinance of the expression ‘child of tender years’ for the purpose of s. 19. But we take it to mean, in the absence of special circumstances, any child of any age, or apparent age, of under fourteen years.’ Dictum of Lord Goddard, C.J., in *R. v. Campbell*, [1956] 2 All E.R. 272, that ‘whether a child is of tender years is a matter of the good sense of the court’ . . . where there is no statutory definition of the phrase, approved.

Appeal allowed.

Selembwe and anor. V Uganda criminal proceeding supreme court 2009 EA.

In **Oloya V Uganda** the court found that the age of 14 years is discretionary and nearly provides guide lines for the court to apply.

The accused aged 16 years, was charged with the offense of failing to prevent a fire from spreading. He pleaded not guilty but was later convicted and sentenced to corporal punishment. There had been a big bush fire blazing from the direction of a road and to save his own premises the accused set another fire which spread and damaged the complainant’s house. The complainant testified that he had actually seen the accused setting the other fire and the prosecution called another witness aged 7 years to give an eye witness account of how the accused started the fire. There was no proper *voire dire* nor was there any direction concerning corroboration of the evidence of a child of tender years carried out.

Held

Where the court is confronted with a child of tender years called to give evidence, it should question the child to ascertain whether he or she understands the nature of an oath and if the court does not allow the child to be sworn it should record whether in its opinion the child is possessed of sufficient intelligence to justify reception of the evidence and understands the duty of telling the truth and where the child is a prosecution witness the court should also direct itself that the child’s evidence requires corroboration.

The court record must make clear that such a *voire dire* has been held.

In the instant case the age was given as 16 years and not below and if the trial magistrate entertained any doubt about his age he should have called for evidence to prove it. The sentence of corporal punishment of a boy who is not below 16 was set aside.

Note; the case *supra* sets out all the findings as regards to a child of tender years that the judge must make.....

When a court is faced with a situation where a child is to testify must conduct a process called *voire dire*, that is the process through which the court makes the determination whether that child should testify or not and in coming to that determination the court will consider

Whether the child understands the nature of that oath,

Whether the child understands the difference between right and wrong,

Whether the child has sufficient intelligence to give reliable answers
And whether the child understands the duty of telling the truth. The case of **Oloya**, it was also held that the court must conduct the *voire dire*.

Francisco Matovu V R

The appellant unsuccessfully appealed against conviction for murdering his wife. The Court of Appeal,

however, commented upon two features of the trial. First, one of the witnesses was a boy of eight years old who was permitted to give unsworn evidence but there was no finding on the record as to the boy's intelligence or his understanding of the duty to tell the truth, nor was there anything indicating a direction to the assessors or to the judge himself that the boy's evidence required corroboration. Secondly, the judge reserved until the close of the prosecution case his ruling on the admissibility of the appellant's statement to the police.

Held –

- (i) a judge when confronted with a child of tender years called to give evidence, should himself question the child to ascertain whether he or she understands the nature of an oath and, if he does not allow the child to be sworn, he should record whether, in the opinion of the court, the child is possessed of sufficient intelligence to justify the reception of the evidence and understands the duty of telling the truth.
- (ii) where the child is a prosecution witness, the judge should also direct the assessors and himself that the child's evidence requires corroboration.
- (iii) the proper stage at which to deliver a decision as to the admissibility of a statement is at the close of the —trial within a trial before the jury or the assessors return to court. Appeal dismissed.

This process is important because all witnesses must be sworn before they make witnesses in court 101 of the MCA and 101 of the TIA. However even if the child of tender years who is called as a witness does not in the opinion of the court understand the nature of an oath, the court may still receive and act on that evidence if it is convinced that the child is possessed of sufficient intelligence to justify the reception of that evidence. May also receive the child clearly understands the duty of telling the truth. Where such evidence is received and acted upon the accused is not liable for conviction unless that evidence is corroborated by some material particulars 101 of MCA and 43 of the TIA. In **F Matovu V R** it was held that the court should question the child of tender years, to understand whether the child understands the nature of an oath. The judge cannot allow the child to be sworn, it should none the less record whether the child is possessed of sufficient intelligence to justify the reception of that evidence.

COMPELLABILITY

The general rule is that all witnesses can be compelled to testify in all matters that they have been asked about. S131 of the evidence act. Include things that may incriminate it you; The exceptions lie in privileges these are usually conferred by statutes or through public policy. These are also known as immunities and mostly characterized in three broad ways;

1. Private privilege
2. Professional privilege
3. Public privilege

Private privilege refers to privilege to immunity enjoyed by private persons as a result of private personal status. E.g. spouses enjoy privilege under S.120-1.a

Professional privilege refers to immunity enjoyed by professions concerning to privilege when communicating with their clients e.g. doctor and a patient, counsel and a client, informers, Judges under S.19 and S.120 also gives professions who enjoy privileges.

Public privilege.

Mainly about protecting government secrets. Certain government documents and official communications are privileged. S.122 and 124, the rationale is to protect the government interest as well as public security. The issue normally arises whether the court can compel the government official to explain why he or she thinks that the document in the document should be privileged. In the case of

Duncan V Camel Laird And Co LTD

The submarine, —Thetis which had been built by the respondents under contract with the admiralty, was undergoing her submergence tests in Liverpool Bay, and, while engaged in the operation of a tidal dire, sank to the bottom and failed to return to the surface, with the result that all who were in her, except four survivors, with the result that all who were in her, except four survivors were overwhelmed and lost their lives. A large number of actions were instituted by those representing or dependent on some of the deceased against the respondents claiming damages for negligence.

The respondents in their affidavit of documents objected to produce a number of documents.

Rule

A court of law should uphold an objection taken by a public department called on to produce documents in a suit between private citizens if on grounds of public policy they ought not to be produced. Documents otherwise relevant and liable to production must not be produced if the public interest requires that they should be withheld. The test may be found to be satisfied either [a] by having regard to the contents of the particular document, or [b] by the fact that the document belongs to a class which, on grounds of

public interest must as such be withheld from production, it is essential that the decision to object should be taken by the minister who is the political head of the department concerned and that he should have seen and considered the department concerned and that he should have

But in the case of *Conway v. Rimmer* the above decision was overruled. It is not all about a minister's decision but the court can look at the documents to see whether they should be withheld. The judge comes in to vindicate the public in free flow of information.

The House of Lords held that documents should be produced for inspection in court and if the court finds that disclosure will not be prejudicial to public interest or that the possibility of any of such prejudice was insufficient to justify its being withheld then disclosure should be ordered. It also found that it must balance the two conflicting public interest i.e. that no harm should be done to the state by disclosure and administration of justice which requires that all relevant evidence is adduced.

In the case of ***Raichura Ltd v Sondhi*[1967] 1 EA 624 (CAM)**

In 1963 the plaintiff deposited iron sheets with the defendant, a warehouseman. The written terms upon which the iron sheets were deposited included an exemption clause which purported to exempt the warehouseman from any responsibility for the loss of the iron sheets due to the negligence of the defendant warehouse company or its servants. After the plaintiff had withdrawn some of the iron sheets in August, 1964 the plaintiff demanded the balance of the iron sheets which weighed some twenty tons. The defendant alleged that the iron sheets had been stolen and so could not be delivered. At the trial the damages resulting from a failure to deliver were agreed at Shs. 42,033/10. The main issue, the onus of which was on the defendant, was to satisfy the court that the goods had been stolen. A police inspector who had made enquiries into the theft gave evidence on behalf of the defendant. He stated as his conclusion that goods had been stolen without the complicity of the defendant or any of its servants but, claiming privilege under s. 132 of the Evidence Act, refused to state the facts upon which he reached his conclusion. The trial judge upholding the claim of privilege and accepting the inspector's conclusion as part of the evidence held that the iron sheets had been stolen without any negligence of the defendant and gave judgment for the defendant. On appeal the plaintiff contended that (i) the trial judge erred in upholding the claim of privilege; (ii) the defendant had failed to adduce sufficient evidence upon which the trial judge might reasonably be satisfied that the iron sheets had been stolen.

Held –

(i) the inspector of police was not entitled to claim privilege; (ii) on s. 132 of the Evidence Act:

(a) (per Newbold, P. and Spry, J.A., Duffus, J.A. dissenting) —communications made to the official in the course of his duty|| read with the marginal note —Privilege of official communications|| ordinarily relates to official communications made to a public officer

from an official source; (per Duffus, J.A., the communication is not restricted to a communication from an official source).

(b) if privilege is claimed the witness may be required by the court to explain the circumstances in which the privilege is claimed to enable the court to decide whether the public interest would suffer by the disclosure (per Newbold, P.) but (per Spry, J.A.) not to the extent of considering whether the communication is in fact one of which disclosure ought not to be compelled

(iii) the evidence was insufficient to establish that the iron sheets had been stolen.

Appeal allowed

That court has power to inspect documents.

Examination of witnesses

Examination is done through a three stage process.

The order in which witnesses are produced and examined is regulated by the lower practice for the time being force dealing with criminal and civil procedure. In the absence of statutory provision, the court decides

The examination of a witness by a party who calls that witness is called the ***examination-in-chief***

Examination of that witnesses by the adverse party is called ***cross –examination***

Examination of that same witness by the party who called that witness but after cross examination is called ***re-examination***

In the examination in chief and re examination it is prohibited to ask ***leading questions***.

Leading questions refer to those questions which suggest the answer.

Leading questions are permitted in cross examination. Because it is about testing the veracity of the evidence and undermining the credibility of that witness

The court will not allow indecent or scandalous questions or those which are intended to insult or annoy the witness S.140, 55-56

Hostile witnesses.

These are witnesses who come to testify on behalf of a particular side, but they end up voluntarily giving evidence that under mines that very side

Refractory [refrain]

These are witnesses when called to court to testify, either refuse to appear, or refuse to be sworn, or refuse to answer questions, never cooperative to the court process

ESTOPPEL

The word estoppel is derived from *estoupail* which means to stop.

It simply means that what one has once alleged, either full words or deeds binds that person and he or should not subsequently be allowed to contradict it. Estoppel therefore closes the mouth for a litigant where such litigant has previously taken position and it ought to be pleaded in order to be taken advantage of.

Estoppel is dealt with in S.14, 16 and the general principle is in S.14; which states —when one person has by his or her declaration act or omission, **intentionally caused or permitted** another person to believe a thing to be true and **to act upon that belief** neither he nor she nor his or her representative shall be allowed in any suit or proceeding between himself or herself and that person or his or her representative to deny the truth of that thing. From this provision therefore estoppel arises from **declarations, acts or omissions**.

Estoppel is categorized into three main areas.

1. Estoppel by records
2. Estoppel by deed
3. Estoppel by conduct

Estoppel cannot be set up to contradict substantive law. Therefore it is not available if its purpose is to defeat or avoid the positive duty imposed by the statute. *Maritime electric co ltd V general diaries ltd*

Comparison between the statutes and Estoppel.

It does not confer jurisdiction upon a tribunal that does not have that jurisdiction. *Keen V Holand 1984 1 week law r 251*

Estoppel by record.

It is also referred to as estoppel by judgment. Because it arises out of judgments of the courts of competent jurisdiction. This based on two important principles;

1. That it is the public interest that there must be finality to litigation. *Interest reipublicae sit finis litium*
2. *No one should be harassed twice on the same grounds or for the same cause. Nemodebetbis puniri pro unocausa*

Under this estoppel therefore the judgment of the court which has acted within its jurisdiction is largely conclusive and estoppes the parties from acting in the manner that contradicts the position in that judgment. That party is also barred from raising that issue again unless it can be shown that that judgment was obtained through fraud or through collusion [res judicata derived from S.7 of the civil procedure act]

There are broadly two types of judgments;

1. A judgments in Rem
2. Judgments in personam

Judgments in Rem affect the whole world and are conclusive on the state of affairs which they affect.

Judgments in personam are largely conclusive regarding the facts on which they are based. Therefore judgments in Rem settle the legal position as against the whole world while judgments in personam settle the private rights of the parties

Estoppel can be based on the *cause of action estoppel* or be *based on issue estoppel*

Estoppel by record operates where;

1. The judgment is the final judgment, conclusive on the merits of the case as opposed to judgments on **interlocutory matters**
2. **The** same parties are involved either directly or through their representatives
3. **They** are litigating in the same capacity
4. Dealing with the **same** issues- S.7 and 9 of the civil procedure act; 38 89 40, 42 of the evidence act

NurdinBandali V Lombank Tanganyika LTD 163 EA 304

According to this case, estoppel is defined as a primary rule of evidence where a party to litigation is in certain circumstances prevented from denying something which he had previously asserted to be true.

Estoppel by deed

Under this category, a party who has executed a deed or his privies is estopped from denying the truth of the facts stated in the deed or in its recitals

This estoppel arises only when the cause of action is founded or brought on the deed itself. One can get out from this estoppel if he is able to establish illegality, mistake, fraud greener V cattle 1938 ac p.100- if you sign, execute a deed, you bound by the deed.

Sachoo and Anr V Shamsa and anor;

P as executor of the Will of one Ibrahim Ladha, sued D on a mortgage which it was alleged was executed on Nov 23 1954 by D1 as mortgagor in favour of the testator as mortgagee.

The claim against D1 was founded on the mortgage in her capacity as mortgage and alternatively on an alleged equitable mortgage created by the de by the deposit of the title deeds of the mortgaged property with the testator by D1's employee. One Alimansoor who it was contended was authorized by D1 expressly or impliedly to raise a loan on the security of the said property. The claim against D2 was as surely in respect of the mortgage, his liability there under being limited to any balance remaining owing after sale of the mortgaged property.

A further claim against D2 was founded on an alleged breach of warranty by him as to the identity of the mortgagor. He denied the allegations

Held

As regards to D1's evidence did not support P's proposition that she had expressly or impliedly authorized her agent, Alimansoor, to raise loans on her behalf

As regards to D2, he was estopped from denying that he did not request the loan to be made as the recitals in the mortgage to which he was a party expressly embodied the request, but since the testator chose not to rely on the warranty as to the identity of the mortgagor, the claim against this defendant could not succeed.

A person is bound by the recitals in a deed to which he is a party whenever they refer to specific facts and are certain, precise and unambiguous. Since the second defendant set his hand and seal to the deed, he was estopped from denying any matter which he had specifically asserted therein.

Income tax commissioner V AK

Served on D notices of assessment for the years of income 1953-57

D did not dispute the assessments by notice in writing to the commissioner within the time prescribed by S.109 [I] of the Y tax [mgt] act, however, through representations made by D's accountant to an income tax assessor, the assessor agreed to accept late notice of objection to reduce the income assessed to an agreed sum and to issue amended notices of assessment. It was common ground that D was not prevented from giving notice of objection because of absence, sickness or other reasonable cause and that D had paid income tax pursuant to the agreement. P, however, repudiated the agreement and filed an action for recovery of unpaid income tax, additional tax and penalties based on the original assessments. D's defence was that he had acted upon the agreement reached with the assessor, that the original assessment had been superseded by the agreement to issue amended assessments and that P was estopped from relying on the original assessments.

For P it was contended that the acceptance by the commissioner of late notice of objection was *ultra vires* because D had not given notice of objection within 30 days and had failed to satisfy the commissioner that he had complied with the conditions precedent to admittance of the late notice of objection under the proviso to S.109(i) of the act. It was further contended that estoppel cannot be claimed against a person acting in the exercise of statutory powers or to prevent him from repudiating an act which was beyond the scope of his statutory powers. Held D had complied with all the requirements of the proviso to S.10A of the act with the result that the notice of objection which was accepted by the commissioner was not *ultra vires* and it was a valid notice.

[ii] P was estopped from relying upon the original assessments, suit dismissed.

Obiter: I understand the law to be that no estoppel, whatever its nature, can operate to annul statutory provisions. And a statutory person cannot be estopped from performing

his statutory duty or from denying that he entered into an agreement which it was ultra vires for him to make. A statutory person can only perform acts which he is empowered to perform. His statutory duty or from denying that he entered into an agreement which it was ultra vires for him to make. A statutory person can only perform acts which he is empowered to perform. Estoppel cannot negative the operation of a statute and it is a public duty to obey the law.¶

Estoppel by conduct;

This arises when the person by his words or conduct willfully causes another to believe in the existence of a certain state of things thereby inducing that person act on that belief or alter his or her position. The one whose conduct caused the alteration is estopped from asserting or pursuing a different position. In **Century auto mobiles V hutchingsbeemer 1965 EA 304**; it was held that three elements are required for this estoppel to arise namely;

1. A clear and an un-equivocal representation
2. An intention that it should be acted upon
3. Action upon it in the belief of its truth

This doctrine does not extend to statements of law or future intentions. It must relate to existing of past facts and they must not be ambiguous.

The person who is under the duty to do something may make a representation by not doing that thing-

GreenhoodV ST martins bank

The plaintiff sued the defendant bank, for the amount removed from his account using forged cheques by his wife. The plaintiff knew about these cheques but he had opted to keep quiet. At some point the wife became so ashamed of her deeds that she committed suicide

It was held that he was estopped from alleging the forgery because as a customer of the bank he owed a duty to disclose his knowledge and therefore his deliberate abstention from speaking amounted to represent to the bank that the forged cheques were in order. Estoppel by conduct can also arise under the subtopic estoppel by negligence

Negligence of one person may enable another to perpetrate the fraud on the third party. The one who is negligent may be estopped as against the victim of the fraud from denying the facts by which owing to his negligence the fraud was successful.

PROMISSORY ESTOPPEL.

This arises where a person by his words or conduct makes unambiguous representations as to his or her future conduct with the intention that it will be relied on by another party to affect the legal relations between them and as a result that other person alter his or her position in reliance on that representation. The first person is

prevented from acting inconsistently with that representation if the other person would be prejudiced thereby

ESTOPPEL CASES

Nurdin Bandali v Lombank Tanganyika Limited

[1963] 1 EA 304 (CA)

Per Newbold, .. Estoppel, on the other hand, is primarily a rule of evidence whereby a party to litigation is, in certain circumstances, prevented from denying something which he had previously asserted to be true. Estoppel, whether at common law or in equity, can never found a cause of action, though it may enable a cause of action, which would otherwise fail, to succeed. It is a rule of evidence which comes into operation if (a) a statement of the existence of a fact has been made by the defendant or an authorised agent of his to the plaintiff or someone on his behalf, (b) with the intention that the plaintiff should act upon the faith of the statement, and (c) the plaintiff does act upon the faith of the statement.

ESTOPPEL BY JUDGEMENT (ISSUE ESTOPPEL)

Crown Estate Commissioners v Dorset County Council

In 1968 certain grass road verges within the area of a county council were provisionally registered in the register of common land by the county council acting as registration authority under the Commons Registration Act 1965. The county council acting as the highway authority objected to the registration of the road verges on the ground that they formed part of the highway. At the hearing of objections by the commons commissioners in September 1976 the Crown Estate Commissioners claimed that the verges were part of the manorial lands of a royal manor and not part of the highway. On 17 March 1977 the commissioner held that the verges were part of the highway and excluded them from the register. Thereafter the county council ceased to make any payments to the Crown Estate Commissioners for its use of the verges, claiming that it did not need the consent of the Crown Estate Commissioners in order to carry out its statutory duties as highway authority. The council also encouraged members of the public to pass and repass over the verges and authorised an adjoining owner to construct and pave an access way to his house over part of the road verge. In 1988 the Crown Estate

Commissioners brought proceedings against the council for trespass and sought declaratory and injunctive relief. The council claimed that the road verges formed part of the highway, that it had a special interest in the verges as highway authority and that it was not obliged to obtain the consent of or make payments to the Crown Estate

Commissioners in respect of past or future encroachments on the verges. The council further contended that the Crown Estate Commissioners were estopped from asserting that the road verges did not form part of the highway by the unappealed decision of the commons commissioner. The question whether the Crown Estate Commissioners were estopped by reason of the commons commissioner's decision from asserting against the council that the verges were not part of the highway was ordered to be tried as a preliminary issue. The Crown Estates Commissioners contended that the commons commissioner was not a court of competent jurisdiction for the purposes of issue estoppel because the issue before the commissioner was not the same as the issue in the action since the issue before the commissioner was whether the entries in the register were validly made, while the issue in the action was whether the road verges formed part of the highway and the commissioner had no jurisdiction to adjudicate on the status of the road verges generally or to decide for all purposes, even though unconnected with the register, whether the verges were a highway or not.

Held – There was no reason why the decision of an inferior tribunal with a limited jurisdiction and a strictly limited function to perform should not be capable of creating an issue estoppel, subject always to the constitutional principles that a tribunal of limited jurisdiction could not be permitted conclusively to determine the limits of its own jurisdiction and that a public official could not be barred by issue estoppel from performing his statutory duty. Since the commissioner had a statutory jurisdiction to decide whether the road verges should be registered as common land and for that purpose had to determine whether they formed part of a highway, he had jurisdiction to determine that question also. Furthermore, that was not a jurisdictional question, since the commissioner's jurisdiction to decide it did not depend on the correctness of the answer he gave. All the requirements of issue estoppel were therefore satisfied and the preliminary issue would be answered accordingly

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Per Millet J.

RES JUDICATA

Res judicata is a special form of estoppel. It gives effect to the policy of the law that the parties to a judicial decision should not afterwards be allowed to relitigate the same question, even though the decision may be wrong. If it is wrong, it must be challenged by way of appeal or not at all. As between themselves, the parties are bound by the decision, and may neither relitigate the same cause of action nor reopen any issue which was an essential part of the decision. These two types of res judicata are nowadays distinguished by calling them 'cause of action estoppel' and 'issue estoppel' respectively.

ISSUE ESTOPPEL

Issue estoppel was defined by Diplock LJ in *Thoday v Thoday* [1964] 1 All ER 341 at 352, [1964] P 181 at 198 as follows:

‘The second species, which I will call —issue estoppel, is an extension of the same rule of public policy. There are many causes of action which can only be established by proving that two or more different conditions are fulfilled. Such causes of action involve as many separate issues between the parties as there are conditions to be fulfilled by the plaintiff in order to establish his cause of action; and there may be cases where the fulfilment of an identical condition is a requirement common to two or more different causes of action. If in litigation on one such cause of action any of such separate issues whether a particular condition has been fulfilled is determined by a court of competent jurisdiction, either on

evidence or on admission by a party to the litigation, neither party can, in subsequent litigation between them on any cause of action which depends

on the fulfilment of the identical condition, assert that the condition was fulfilled if the court has in the first litigation determined that it was not, or

deny that it was fulfilled if the court in the first litigation determined that it was.’

The requirements of issue estoppel are conveniently summarised by Lord Brandon in *DSV Silo- und Verwaltungsgesellschaft mbH v Sennar* (owners), *The Sennar* [1985] 2 All ER 104 at 110, [1985] 1 WLR 490 at 499:

‘... in order to create an estoppel of that kind, three requirements have to be satisfied. The first requirement is that the judgment in the earlier action relied on as creating an estoppel must be (a) of a court of competent jurisdiction, (b) final and conclusive and (c) on the merits. The second requirement is that the parties (or privies) in the earlier action relied on as creating an estoppel and those in the later action in which that estoppel is raised as a bar must be the same. The third requirement is that the issue in the later action in which the estoppel is raised as a bar must be the same issue as that decided by the judgment in the earlier action.’

The broader principle of *res judicata* is founded on the twin principles so frequently expressed in Latin that there should be at an end to litigation and justice demands that the same party shall not be harassed twice for the same cause.’

Arnold and others v National Westminster Bank plc

In 1983 on the first rent review date of a lease a dispute arose between the landlords and the lessees over whether the ‘fair market rent’ defined in the lease meant the rent under a hypothetical lease containing the same provision for five-yearly rent reviews as the actual lease or the rent under a hypothetical lease containing no provision for reviews. The judge held that the hypothetical lease was to be treated as containing no provision for rent reviews. Shortly before the second review date the lessees instituted

proceedings seeking rectification of the lease and a determination of the true construction of the rent review clause on the ground that subsequent cases had shown the judge's decision on the first rent review to be wrong. The landlords applied to strike out the claim on the ground that there was an issue estoppel between the parties which prevented the lessees from relitigating the matter. The Vice-Chancellor dismissed the application on the ground that a subsequent change in the law which indicated that a previous decision on a point sought to be relitigated in a second action between the same parties was wrong was capable of bringing the case within the exception of the doctrine of issue estoppel under which the interests of justice required the matter to be relitigated notwithstanding the prima facie existence of an issue estoppel. The lessors appealed against the dismissal of their application.

Held – Where a particular issue had been raised and decided in previous proceedings between the same parties the decision on that issue normally gave rise to an issue estoppel but, unlike cause of action estoppel, an issue estoppel was not absolute and in special circumstances, such as a fresh material or new developments in the law which showed the issue to have been wrongly decided either in fact or law, the court would allow the issue to be reopened in subsequent proceedings between the parties if that was necessary to work justice between them. On the facts, since it was not merely arguable that, in the light of the subsequent change in the law, the decision in the first action might have been wrong but instead the decision in the first action was plainly wrong with the result that there was a substantial likelihood that if the first action were to be tried the opposite result would be achieved, there were exceptional circumstances sufficient to defeat the estoppel. Accordingly the lessees were not estopped from raising the matter of construction of the rent review clause.

Director of Public Prosecutions v Humphrys

In June 1973 the respondent was tried on a charge which alleged that on 18 July 1972 he had driven a motor cycle while disqualified. The respondent admitted that on 18 July he was disqualified but denied that he was the person driving the motor cycle on that particular date. At the trial a police constable testified that he had stopped the respondent while he was driving a motor cycle on that date. The respondent testified that he had not driven a motor vehicle at all during the year 1972 and gave evidence which suggested that the person stopped by the police constable was someone else. The respondent was acquitted. Subsequent enquiries made by the police disclosed evidence that the respondent was in fact the driver stopped by the police constable on 18 July 1972. The respondent was subsequently charged with perjury in that during the course of his trial in June 1973 he had wilfully made a false statement material in those proceedings, namely that he had not driven any motor vehicle during the year 1972. At the respondent's trial the Crown adduced evidence of several witnesses which tended

to show that the respondent had driven a motor cycle during 1972. In addition, the same police constable who had given evidence at the respondent's trial in June 1973 was called to give exactly the same evidence that he had given at the earlier trial, ie that the respondent had been driving a motor cycle on 18 July 1972. The respondent was convicted of perjury. On appeal, the Court of Appeal, Criminal Division ([\[1975\] 2 All ER 1023](#)), quashed the respondent's conviction on the ground that the doctrine of issue estoppel applied to charges of perjury and that, as the jury at the first trial had determined the question whether the respondent had been the driver of the motor cycle on 18 July 1972 in the respondent's favour, the evidence of the police constable that the respondent was the driver on that date was inadmissible in support of the charge that the respondent had falsely sworn that he had not driven a vehicle in 1972. The Crown appealed.

Held – The doctrine of issue estoppel had no application to criminal proceedings and in any event could not apply to prevent a charge of perjury being brought against a person who had been acquitted of another offence in respect of evidence given by him at the trial for that offence. Even if the doctrine did apply, the Crown was not precluded from relying on the police constable's evidence at the respondent's trial for perjury, since that evidence was not directed to proving that the respondent had been guilty of driving while disqualified but to the issue whether he had ridden a motor cycle in 1972 contrary to his sworn evidence. Accordingly the appeal would be allowed and the respondent's conviction for perjury restored.

Abdulali Jiwaji & Co (Properties) Limited v JP Pandya

The agent for the predecessors in title of the appellant company had served the respondent on June 10, 1949, with a notice to quit the premises he occupied by July 31, 1949. On November 13, 1953, the Kampala Municipal Council having approved a development scheme involving demolition of the premises, served the respondent, in pursuance of s. 6 (1) (b) of the Rent Restriction Ordinance, with a notice to quit the premises by November 30, 1954. On December 7, 1955, the appellant company filed proceedings in the District Court against the respondent for possession of the premises and pleaded that the respondent was a statutory tenant paying a monthly rental of Shs. 100/-. The respondent in his defence denied being a statutory tenant, admitted receipt of the Notice dated November 13, 1953, but contended that he was a contractual tenant and that the appellant company was not entitled to possession.

The trial magistrate dismissed the action on the ground that the appellant had failed to prove that the respondent was a statutory tenant. The appellant company appealed on two grounds, namely: (1) that the notice to quit dated June 10, 1949, was valid and that as it was not challenged in the lower court it could not be disputed on appeal, and (2) that the respondent was estopped by an admission he had made in Civil Case No. 680 of 1956 of the District Court from saying that he was not a statutory tenant. **Held** –

- (i) as the notice in question was never pleaded it was never strictly in issue.
- (ii) the respondent's failure to cross-examine the appellant's witness at the trial, who merely proved service, did not amount to an admission that the notice was a legal one.
- (iii) the judgment in Civil Case No. 680 of 1956 did not in any way alter the legal character of the respondent in any of the ways mentioned in s. 39 of the Evidence Ordinance, nor was there any evidence that the appellant acted upon the belief that the respondent was a statutory tenant. Appeal dismissed.

BURDEN OF PROOF

The purpose of the Law of Evidence is to limit the scope of investigation as well as establish that scope. For this reason, there are certain rules which have been prescribed to help in the establishment of the liability or otherwise of parties.

The general rule is that facts must be proved unless they are admitted. The Law of Evidence inter alia prescribes:

- i. How facts may be proved;
- ii. Who must prove those facts
- iii. Procedure of proving facts

The sum total of these 3 attributes is called = Burden of proof. 'Burden of proof denotes a number of things:

The obligation to prove certain facts sometimes, called the evidential or provisional burden, i.e. the duty to adduce evidence at a certain stage of the proceedings. This is constantly shifting; could also mean the duty to prove a case, or the legal burden which is the duty to establish a case against the other side or to finally prove the case. This does not shift and is always on the plaintiff.

General Principles governing Burden of proof (Ss 101-106)

According to s.101, it is provided that whoever desires any court to give any judgment as to any legal right or liability dependant on the existence of facts which he asserts, must prove that those facts exist and when one is bound to prove the existence of any fact, it is said that the burden of proof lies on that person. In practice, s. 101 generally refers to the legal burden of proof. It follows the common law principle that whoever asserts must prove, but he who denies needn't prove. Very often, however, the extent of the burden of proof will depend on the nature of the case e.g. in civil cases, a person who asserts is usually the plaintiff and he is therefore one who is expected to prove, while in criminal cases, this burden is on the prosecution.

S.102 makes further provision for burden of proof. The burden of proof for suit/proceeding lies on that person who would fail if no evidence at all were given on either

side. If the prosecution has made out a prima facie case, if the accused does not say anything, he will be at a loss therefore has a burden to prove otherwise.

Burden of proof in Criminal cases

Under Art. 28 of the 1995 Constitution, the prosecution has the duty to prove the case against the accused, i.e. this is the legal burden.

Woolmington v DPP

Facts: A man was charged with the murder of his wife. He pleaded accident, but the trial court held that once the prosecution had proved an unlawful killing, it was the duty of the defense to prove circumstances which would reduce the killing to an accidental one. The accused appealed against this judgment.

Held: The House of Lords quashed the conviction for murder saying that it was wrongly held that the accused was guilty because he had failed to prove that the killing was innocent. Court said that in criminal cases, it is always the duty of the prosecution to prove the case against an accused beyond reasonable doubt that where a man raises the defense of accident, he has already cast doubts on the prosecution case therefore the prosecution has a duty to clear that doubt. The prosecution must prove because of the constitutional presumption of the innocence of an accused person and the right of the accused not to incriminate themselves – to remain silent. However, the general principle has exceptions; most of them are statutory exceptions, although others derive from common law, e.g. the defenses of insanity and intoxication.

In all those cases where the accused is required to prove defences e.g. insanity and intoxication, the burden is upon him to do so although the standard or degree of proof is not as high as that placed on the prosecution.

R V kachinga

The appellant without reason or motive killed his mother, he had never before been known to be violent or peculiar in his behavior and at his trial for murder two doctors who had him under observation gave evidence. They differed in their opinions one being unable to find any signs of mental disturbance except —weak-mindedness and the other being positive that the appellant had a mild condition of schizophrenia, the trial judge held that the appellant had not proved beyond any reasonable doubt that he was insane and convicted him of murder. The appellant appealed. Held;

The burden of proof resting upon an accused to prove insanity is not as heavy as the burden of proof resting upon the prosecution to prove its case beyond reasonable doubt. It is generally speaking sufficient if he produces such a preponderance of evidence as to show that the conclusion that he was insane at the time of the offence is substantially the most probable of the possible views of the facts

Appeal allowed a finding of guilty but insane substituted

Kagoro v R

Cheminingwa v R

Kayemba v Ug

Saidi v R

Ug v Ssebalya

An accused who raises an alibi does not have the duty to prove it- the prosecution must prove otherwise.

Sometimes, there are statutory offences wherein, the burden is upon the accused to show that they did not commit the relevant statutory offence, i.e. they have offences of strict liability and it is up to the accused to show that you are not guilty or liable. See s.105 of the Evidence Act. Where the law places the onus on the accused to prove innocence e.g. the Mining Act, Children's Act, is this contrary to Art, 28(4)(a) of the Constitution. Facts within the personal knowledge of the accused; If you can bring the case within the exception of s.105 of the Act.

Burden of Proof in Civil cases

S.101 places the burden of proof on a person who desires any ruling or judgment. It provides for the legal burden of proof on the prosecution.

S.102 provides for the evidential burden of proof in civil cases where ordinarily the burden of proof is on that person who is asserting or states the affirmative, although it is not usually necessarily used in the grammatical sense, but refers to that person who makes the allegations. The use of the word asserting/ affirming was considered in the case of:

Joseph Constantine Ltd v Imperial

Held: The burden lies on that person who affirms and not the person who denies, but the term

affirmation is wide enough to include every allegation, whether positive or negative.

Souard v Legadd

Alimadi v Mohammed

CIT v Bapoo

Sometimes, especially in income tax cases, the rule may be somewhat different from the general rule i.e. in most cases, it becomes the tax payer who is under duty to prove that the assessment against him was excessive. See s.103 of the Income Tax Act.

If matters of customary law have been alleged to exist, it is the person alleging their existence who must prove.

Case v Ruguru

Kimani v Gikanga

However, in civil proceedings generally, where evidence is so scanty that it is difficult to find a conclusion on either side, the burden is on that person who will suffer most if no evidence is adduced at the time. See s.102 Evidence Act.

Wakling v London & South Western Railways

Facts: This was an action by a widow under the Fatal Accidents Act. She alleged that her husband had met his death through the negligence of the defendants. The only evidence available was that the defendant's body was lying at the side of a railway line, near a crossing. She did not adduce further evidence but invited court to say that it was due to the railway's negligence. Held: The plaintiff could not succeed unless she brought further evidence to show that her husband actually died at the hands of or through the negligence of the railway authority.

STANDARD OF PROOF

This is sometimes called the degree of persuasion. Once a legal burden is imposed on a particular person, the law also prescribes a certain degree to which he must aspire and until the degree is attained, the burden is not discharged. The standard of proof normally depends on the circumstances or nature of the case, with a clear demarcation between what is expected in criminal and civil cases.

Under Common law, two basic standards have been identified for criminal and civil actions. In civil cases, the general standard is on the balance of probabilities or the preponderance of doubt/ evidence, i.e. the party who bears the burden simply has to show that his case is more probable than not, i.e. that it is more likely to be more correct than the other person's case. However, in criminal cases, the duty of the prosecution is to prove the case against the accused beyond reasonable doubt. The term was considered in some cases. It is a general view of jurists that it is better not to define things, as it leads to being side-tracked.

Miller v Minister of Pensions

Issue: What is the concept of proof beyond reasonable doubt?

Held: Denning MR distinguishes proof beyond reasonable doubt from conclusive proof. He says that proof beyond reasonable doubt does not mean proof beyond all shadow of doubts, that the law would fail to protect the community if fanciful possibilities were allowed to displace a finding of beyond reasonable doubt.

If doubt is not reasonable, on the facts, then you cannot say the case has not been proved by the prosecution.

R v Yap Chuan Ching [1956] 63 Cr. App 57

Held: The case concluded by saying that the concept of beyond reasonable doubt was a complicated one and that the court should not attempt to define it.

In defining the issue of beyond reasonable doubt the East African courts are unanimous that that standard is the one to be applied in criminal cases. They have also decided that the term beyond reasonable doubt suggests a high degree of proof that it will be discharged the moment the court is satisfied that the evidence adduced is

inconsistent with the innocence of the accused. In as far as defenses are concerned in criminal law, the standard expected of the accused is proof on the balance of probabilities. There are some English cases which suggest that the standard for some defenses e.g. insanity, is higher than on a balance of probabilities. However, in East Africa, the view is that all defenses raised during criminal proceedings are provable on the balance of probabilities.

What is the standard in Matrimonial Causes?

This is an arguable matter. There is no settled rule, depending on whatever jurisdiction you may be looking at. The problem is that the allegations have a quasi-criminal nature, e.g. adultery, cruelty, bigamy, etc. The question has always been whether to employ the criminal standard of proof or the civil standard. In addition, controversy stems from the provisions of s.9 of the Divorce Act which provides that court will grant a divorce if it is satisfied that the grounds alleged exist.

Two different views have been advanced with regard to the meaning of the term ‘satisfied’.

Stjerholm v Stjerholm

Held: It was laid down that the word ‘satisfied’ is used in that section to imply a high degree of ‘satisfaction’ which must be attained therefore that implies that the standard is beyond reasonable doubt.

There are some cases that have supported this view. These cases say that the standard in matrimonial causes is higher than in normal civil cases.

See:

Mallinson v Mallinson

Patel v Patel

Another line of argument regarding the word ‘satisfied’ is that it is used in the Divorce Act to imply a burden of proof, i.e. that it implies who bears the burden of proof, i.e. the petitioner must bear it and satisfy the court therefore it should not be interpreted to mean that it requires a high degree of proof, that since it is a civil case, the standard must be on the balance of probabilities. The compromise position is that since matrimonial causes are neither purely criminal nor purely civil, but are in between, the standard should be in between. The most popular view in Uganda is that the standard in matrimonial causes should be higher than the balance of probabilities, but not as high as beyond reasonable doubt.

CORROBORATION

Corroborative evidence is that evidence which tends to support or confirm other evidence already given in court and it has to be from an independent source. Evidence

that is itself corroborative cannot corroborate other evidence because both need to be supported. It is evidence which is relevant, admissible, credible and independent and which implicates the accused person in a material particular. And this is definition given by Keane in his book, The Modern Law of Evidence, 1994 Edition

The term ‘corroborative evidence’ was defined in:

R v Baskerville

Facts: B had been charged with acts of gross indecency with 2 boys. The only direct evidence of the act was the evidence of the 2 boys, but it transpired that at the trial, the two boys were accomplices to the act.

Held: Their evidence had to be corroborated and court defined corroborative evidence as evidence which, in some material particular, tends to show that the accused committed the crime charged. According to Lord Reading,

—We hold that evidence in corroboration must be independent testimony which affects the accused by connecting or tending to connect him with the crime, i.e. it must be evidence which implicates him, meaning that the evidence which confirms in some material particular, not only the evidence that the crime has been committed, but also, that the accused committed it.‖

This decision was followed in the case of:

R v Manilal Purohit [1949] 9 EACA 58

Held: Corroboration, which should be looked for, is some additional evidence rendering it probable that the evidence of the witness is true and it is reasonably safe to act upon it, that it must be independent evidence which affects the accused by connecting him or tending to connect him with the crime confirming in some material particular, not only the evidence that the crime has been committed, but also, that the accused committed it. However, it is not necessary to have confirmation of all circumstances of the crime. Corroboration of some material particular, tending to implicate the accused is enough.

Key points to note about Corroborative Evidence

It must be independent testimony **R v Baskerville;**

It should connect the accused to the commission of the offence;

It needn't corroborate the whole story **R v Manilal;**

R v Kilbourne [1973] App. Cas 729,

The word ‘corroboration’ had no special technical meaning; by itself it meant no more than evidence tending to confirm other evidence.

Per Lord Hailsham. —Corroboration is only required or afforded if the witness requiring corroboration or giving it is otherwise credible. If his evidence is not credible, a witness’s testimony should be rejected and the accused acquitted, even if there could be found evidence capable of being corroboration in other testimony. Corroboration can only be afforded to or by a witness who is otherwise to be believed. If a witness’s testimony falls of its own inaction the question of his needing, or being capable of giving, corroboration does not arise. The word ‘corroboration’ by itself means no more than evidence tending to confirm other evidence. In my opinion, evidence which is (a) admissible and (b) relevant to the evidence requiring corroboration, and, if believed, confirming it in the required particulars, is capable of being corroboration of that evidence and, when believed, is in fact such corroboration. Lord Reid asserts that ‘there is nothing technical in the idea of corroboration when in the ordinary affairs of life one is doubtful whether or not to believe a particular statement. One naturally looks to see whether it fits in with other statements or circumstances relating to the statement. The better it fits in, the more one is inclined to believe it. The doubted statement is corroborated to a greater or lesser extent by the other statements or circumstances with which it fits in. And he goes on to say that, —Any risk of conviction of an innocent person is lessened if conviction is based upon the test of more than one acceptable witness.

DPP v Kilbourne? The respondent was convicted of one offence of buggery, another offence of attempted buggery and five counts of indecent assault on two groups of boys. The first four counts related to offences in 1970 and it was with regard to one group of boys and the second set, that is the three others, were committed in 1971 against a second group of boys. The defence put forward was one of innocent association. In essence what the accused was saying is that he didn’t indecently assault the boys; he didn’t behave towards them in an untoward manner, that he innocently associated with them.

The judge directed the jury that they would be entitled to take the uncorroborated evidence of the second group of boys if they were satisfied that the boys were speaking the truth as supporting evidence given by the first group of boys. So here you have two sets of evidence. The one set given by one group of boys. Remember we said that offence was committed in 1970, the other one in 1971. And what the judge is telling the jury here is that if they are convinced that the second group of boys are telling the truth, then they can use that evidence to support the evidence that was given by the first group of boys. In essence that the evidence of the second group of boys could corroborate the evidence of the first group of boys.

The accused was convicted. The Court of Appeal however quashed the conviction and the matter went to the House of Lords. And the House of Lords held that the judge's direction was proper and the respondent was properly convicted since the sworn evidence of a child victim could be corroborated by evidence of another child victim of alleged similar misconduct. And this is so where the evidence is admissible and indicative of the accused person's guilt.

Evidence in corroboration must be independent testimony which affects the accused by connecting or tending to connect him with the crime. In other words, it must be evidence which implicates him, that is which confirms in some material particular not only had the evidence that

the crime has been committed but also that the prisoner committed it.¶

Rationale for Corroboration

R v Jipkering arap Kosgey. It is authority for the proposition that no amount of corroboration would render incredible evidence credible. So the court has first to inquire as to whether the evidence that it has before it is credible before it even goes on to look for fortifying evidence, strengthening or confirming evidence.

In most cases, the basic reason courts and law require it is to ensure reliability of the evidence that has been given. Because in certain situations, court feels cautious about using certain pieces of evidence e.g. where some of the witnesses are interested parties, e.g. the accomplices and the co-accused;

There are some offences where it is rare to have direct witnesses apart from the complainant e.g. in sexual offences, most times the only witness is the complainant and at trial, it becomes the complainant's word against the accused's. Thus, court needs corroboration to test the reliability of that evidence.

General Rule: S. 133 of the Act provides that subject to the provisions of any other law in force, no particular number of witnesses shall in any case, be required for the proof of any fact. So essentially you can prove your case by the evidence of one witness. You do not need a requisite or specific number of witnesses. That being the case then you do not just come to court to rehash evidence that has been stated before. The evidence that is coming in to corroborate has to be independent, it has to be credible on its own. It shouldn't be a mere repetition of the evidence on record.

However, this very provision creates exceptions in the sense that it is subject to any other law in force.

Exception: The requirement for corroboration is an exception to the general rule because it permits more witnesses. And asking for corroboration or requirement is an exception to the general rule. Like all rules of evidence the rule is larger than life but the exceptions are even larger. There are exceptions to this rule that corroboration is not required.

Situations in which Court will require Corroboration

- i. Where corroboration is required as a matter of law, i.e. where there is a statutory requirement;
- ii. Where corroboration is required as a matter of judicial practice or prudence.
- iii.

Corroboration as a statutory requirement

There are a number of statutes that make corroboration in certain instances a necessity. What is worth noting is the effect of the corroboration requirement. The effect is that court must always get corroboration and as such, cannot convict without it.

Penal Code Act

There are a number of offences where the evidence must be corroborated before a conviction can be made, e.g. Treason, Sedition, Perjury, Procuring defilement of women by threats;

The Traffic & Road Safety Act e.g. over speeding;

Children's Act e.g. petition for a declaration of parentage; unsworn evidence of a child of tender years must be corroborated. See s.12 Oaths Act which requires all evidence in court to be sworn. There are exceptions created under the Magistrates Courts Act and the Trial on Indictment Act, although in judicial practice whether or not the evidence is sworn, it must be corroborated.

Where law requires corroboration

1. Offence of procuration; (S.s 131,132 Penal Code) for prostitution and other immoral purposes; Prostitution is not an offence but procuration and living off benefits of prostitutions. Since the offences of procuration are easily alleged and difficult to refute, a person shall not be convicted of such an offence upon the evidence of one witness only. That evidence has to be corroborated in some material particular which implicates the accused.. Section 131 of the Penal Code. Under S. 132 which provides for procuration of defilement by threat or fraud or administering drugs, a person shall not be convicted upon the witness of one person only. In dealing with procuration it is required that the corroborating evidence must be implicating the accused. Evidence which leads the accused person to the offence charged. **R. V. Goldstein** (1914) 11 CAR 227
2. Speeding: The opinion of evidence of non-expert is as a general rule not admissible. One of the exception to this general rule however relates to speed.

With speed you can opine even though you are not an expert because the opinion is linked up to what you perceive. Section 120(2) of Traffic Act it is recognised that allowing for admission of opinion evidence is opening up doors for wrong convictions, there is danger in convicting on opinion evidence of non experts. This Section provides that a person charged under the section shall not be liable to be convicted solely on the evidence of one witness to the effect that in the opinion of the one witness, the person charged was driving the vehicle at such great speed. The assumption of the law is that the opinion of one or two persons that a vehicle has exceeded the speed limit is sufficient to justify a conviction under this provision. It is required that their evidence should relate to the speed of the vehicle at the same place and time. **Brightly V. Pearson** 1938 4 AER 127, there is also the case of **Nicholas V. Penny**,

1950 2 KB 46 which held that the court could convict on the evidence of a Police Officer who had checked a vehicle speed from a speedometer of his own car which was driven at an even distance behind the defendant's car, i.e. there is no need for corroboration. **CROSSLAND V. DPP** (1988) 3 AER 712 where it was stated at page 714 that it is plain that the subsection is intended to prevent the conviction of defendant on evidence given by a single witness of his unsupported visual impression of the defendant's speed. In this case an accident reconstruction expert had inspected the scene of the accident and had even carried out tests on speed, .. the court held that this was not solely the opinion witness of one witness because the witness had also carried out other tests...

s. 120(2) of the Traffic and road Safety Act provides that a person charged with overspeeding shall not be convicted solely on the evidence of one witness to the effect that in the opinion of the witness the person charged was driving the vehicle at a greater speed.

NICHOLAS V PENNY (1950) 2 ALL ER 89

The appellant was convicted of driving at a speed exceeding the prescribed. The only witness called for the prosecution a police constable stated that he followed the appellant's car over a measured distance, keeping an even space between him and the appellant, and that the speedometer in the police car showed a speed of 40 miles per hour. The appellant contended that the police officer had no personal knowledge of the speedometer.

Held

A person might be convicted of exceeding the speed limit on the evidence of one police officer if it was supported by evidence of the reading of a speedometer. Even though there was no admissible evidence that the speedometer had been tested, the justices might act on that evidence.

NEED FOR REFORM.

The need for corroboration in this case allows for the admission of opinion evidence of nonexperts. In doing so s. 120 is opening up doors for wrong convictions as there is danger in convicting on opinion evidence of non experts though corroborated. The law should be revised to allow the admission of evidence of experts only in relation to speeding

3. **PERJURY:** Under Section 98 of Penal Code a person cannot be convicted of committing perjury or subornation of perjury solely upon the evidence of one witness. It is not just in judicial proceedings but also where person makes false statements on oath. The corroboration need only relate to the falsity of the statement in question. Under this Section corroboration need not involve a second witness or that it takes any particular form.
4. **TREASON:** No person charged with treason or any such felony may be convicted except on his own plea of guilty or on the evidence in open court of two witnesses at least to one to one overt act of the kind of treason or felony charged or alleged or the evidence to one witness to one overt act or one other witness to one overt act of treason or the same kind of felony. S. 23 penal Code

5. **CHILDREN OF TENDER YEARS –**

S. 101 magistrates Courts Act.

Where the court considers that a child understands the nature of the oath, the child will be sworn. This section is dealing with instances where a child is sworn.... The accused shall not be liable to be convicted on such... Who is a child of tender years, this was defined in the case of **Kibageni V. R** The Appellant here was convicted of murder, the conviction was based on the evidence of two young boys who had been affirmed and they were between the ages of 9 and 14. there was no admission of the offence although the fact was assumed at the trial. There was no corroborating evidence and no warning was given as required. On Appeal, it was held that the evidence of the two boys was of so vital a nature that the court could not say that the trial judges failure to comply with the requirements for corroboration was one which could not have occasioned a miscarriage of justice. The second finding was that the failure of the trial judge to warn either himself or the assessors of the danger of convicting on the evidence of the two boys without corroboration was an additional ground for allowing the appeal. At page 94 the court stated, _ there is no definition in the Oaths and Statutory Declarations Act of the expression child of tender years for the purpose

of Section 19 but we take it to mean any child of any age or apparent age of under 15 years in the absence of special circumstances. This definition is important when looking at competence and compellability. *Oloo s/o Gai V. R.*,

Maganga Msigara V.R the Appellant here was convicted of murder, the prosecution case depended on 3 witnesses included the sworn evidence of a child. The judge did not warn either the assessors or himself of the desirability of the evidence of child being corroborated. On Appeal it was held that where there has been proper direction as to corroboration, the court will allow the Appeal even if there was no corroboration unless it considers that no substantial miscarriage of justice has occurred. The court also held that it would be unsafe to allow the verdict of murder to stand in this particular case and allowed a conviction of manslaughter to be substituted instead.

S. 40 Of the Trial on Indictment Act
s. 101 of MCA unsworn evidence of a child
should be corroborated.

Fransisio Matovu v R [1961] 1 EA 260 (CAK)

The appellant unsuccessfully appealed against conviction for murdering his wife. The Court of Appeal, however, commented upon two features of the trial. First, one of the witnesses was a boy of eight years old who was permitted to give unsworn evidence but there was no finding on the record as to the boy's intelligence or his understanding of the duty to tell the truth, nor was there anything indicating a direction to the assessors or to the judge himself that the boy's evidence required corroboration. Secondly, the judge reserved until the close of the prosecution case his ruling on the admissibility of the appellant's statement to the police.

Held –

(i) a judge when confronted with a child of tender years called to give evidence, should himself question the child to ascertain whether he or she understands the nature of an oath and, if he does not allow the child to be sworn, he should record whether, in the opinion of the court, the child is possessed of sufficient intelligence to justify the reception of the evidence and understands the duty of telling the truth.

(ii) where the child is a prosecution witness, the judge should also direct the assessors and himself that the child's evidence requires corroboration.

(iii) the proper stage at which to deliver a decision as to the admissibility of a statement is at the close of the —trial within a trial before the jury or the assessors return to court. Appeal dismissed.

Okeyo Kigeni v Republic

[1965] 1 EA 188 (CAN)

The appellant was convicted of murder and the principal witness for the prosecution was a boy of 12 years who gave unsworn evidence to the effect that he had seen the appellant hitting the deceased with a spear on the right side of his chest while the deceased was sitting and that he had reported the matter to his mother. The mother gave evidence that on receiving the report of the death she rushed to the scene of the crime and there she saw the deceased lying dead with a wound on his body and the appellant standing nearby holding a blood-stained knife. The medical evidence was that the deceased was probably sitting when the injury on his chest was inflicted and that it was most likely that the injury was inflicted by a spear. The trial judge failed to direct himself or the assessors on the necessity for the corroboration of the child's evidence and withdrew the question of provocation from the assessors. It was common ground that a defence of provocation was not specifically raised at the trial although there was evidence in which it was suggested that there had been a fight between the appellant and the deceased, and also that the appellant was alleged to have told one prosecution witness that he (appellant) had fought with the deceased. On appeal it was submitted that the judge's failure to give any directions both to himself and the assessors on the need for corroboration of the child's evidence was fatal to conviction of the appellant and that the defect could not be cured. **Held –**

- (i) the court will, as a rule, quash a conviction where no direction on the necessity for corroboration has been given in a case where corroboration is required as a matter of law or in practice, unless where the court, after considering the whole evidence comes to the conclusion that there was such ample and satisfactory evidence capable of amounting to corroboration that the court does not feel there has been a miscarriage of justice;
- (ii) having regard to all the evidence the court came to the conclusion that there was circumstantial evidence to corroborate the child's evidence;

Kibangeny Arap Kolil v R

[1959] 1 EA 92 (CAN)

The appellant was convicted by the Supreme Court of the murder of his cousin. Evidence of the killing was given by the eye-witness testimony, upon affirmation, of the appellant's two sons whose ages the trial judge estimated at from twelve to fourteen years and nine to ten years respectively. The manner of killing was corroborated by medical evidence, but there was no corroboration by any other witness, nor by any circumstance sufficient to raise more than very slight suspicion, of the boys' evidence of the identity of the deceased's assailant. Throughout the trial it seems to have been assumed both by defence counsel and the court that the murderer was the appellant and the only defence raised was that of insanity. The killing was at no time admitted by the appellant; in fact in a cautioned statement in answer to the charge he denied it, while in his unsworn statement from the dock he did not admit it but said —At this time I was sick and did not know what I was doing . . . I was told I had killed someone. When

I was told this I told them I did not know what I was doing. The trial judge rejected the defence of legal insanity and convicted the appellant. At the hearing of the appeal Crown counsel intimated that he felt unable to support the conviction based as it was solely on the evidence of the two boys, for two reasons, namely: (a) the court had failed to satisfy itself, before they testified, whether or not they understood the nature of an oath or affirmation and (b) the court had failed to warn itself or the assessors of the danger of convicting on their uncorroborated testimony. **Held –**

(i) since the evidence of the two boys was of so vital a nature the court could not say that the trial judge's failure to comply with the requirements of s. 19 (1) of the Oaths and Statutory Declarations Ordinance was one which could have occasioned no miscarriage of justice; (ii) the failure of the trial judge to warn either himself or the assessors of the danger of convicting upon the evidence of the two boys in view of the absence of corroboration and any admission by the appellant was an additional ground for allowing the appeal.

Per curiam – —There is no definition in the Oaths and Statutory Declarations Ordinance of the expression ‘child of tender years’ for the purpose of s. 19. But we take it to mean, in the absence of special circumstances, any child of any age, or apparent age, of under fourteen years. Dictum of Lord Goddard, C.J., in *R. v. Campbell*, [1956] 2 All E.R. 272, that —whether a child is of tender years is a matter of the good sense of the court . . . where there is no statutory definition of the phrase, approved.

NEED FOR REFORM

The evidence act does not define the expression —child of tender years. Case law has put it at below 14 years. However this is left to the discretion of court. This is a matter of reform. The law should be revised so as to put the age limit to the expression of tender years. This is because one court may consider a child of 13 years as of tender age and another court finds to the contrary. This leads to the exclusion of evidence which would be very important in a certain case. The law should be revised to have a consistent age limit for administration of justice **Corroboration as a requirement of Judicial Practice**

There are a number of these circumstances of judicial prudence. The difference between these and the former is that here, the conviction based on this may not be fatal, as court may not convict on uncorroborated evidence. Court has the discretion to decide if the evidence is reliable, but must always caution itself of the requirement for corroboration.

Categories:

Accomplice evidence

This is governed by s.132 of the Act according to which, an accomplice shall be a competent witness against an accused person and a conviction is not illegal merely

because it proceeds upon the uncorroborated testimony of an accomplice. By statutory provision, there is no requirement of this, but courts have seen that it is evidence of the worst kind and must be corroborated.

R v Baskerville Davis v R [1954] AC378 Govinder Singh v R (1956) 23 EACA 597

The rationale for requiring corroboration for accomplice evidence was given in —The Handbook for Magistrates:

Accomplices are usually interested parties and they are generally always infamous witnesses as a result of which their evidence is regarded as untrustworthy by courts. The reason is that the accomplice is likely to tell lies in order to shift guilt from himself or to play down the part that he took commission in the offence.

As a company, a partner in crime with the accused, an accused is not likely to value his oath;

If an accomplice usually gives evidence because of the hope or promise to be pardoned or treated leniently by the prosecution.

DAVIS V. DPP is the landmark case on Accomplice Evidence. It classifies as accomplices the following persons

- (a) Parties to the offence in question;
- (b) Handlers of stolen property in case of thieves from whom they receive being on trial for the theft;
- (c) Parties to another offence committed by the accused in respect of which evidence is admitted under the similar fact evidence rule.

The rule with regard to corroboration was stated in this case by Lord Simmons as follows: Where a person who is an accomplice gives evidence on behalf of the prosecution, it is the duty of the judge to warn the jury that although they may convict on this evidence, it is dangerous to do so unless corroborated. Where the judge fails to warn the jury in accordance with this rule, the conviction will be quashed even if there be ample corroboration of the evidence of the accomplice.

Why do we require corroboration for accomplice evidence?

The rationale is that the accomplice may have a purpose of his own to serve, he may give false evidence against the accused out of spite or to exaggerate or even invent the accused role in the crime in order to minimise his own culpability. .

Davies V. DPP

The defendant with other youths attacked another group of youths with fists. One of the youths in the other groups died subsequently of stab wounds. Six youths were charged with the murder but only the defendant was convicted. Ell was one of the six youths charged but he was convicted of the lesser charge of common assault. At the

trial of the defendant, L testified for the prosecution as to the admission by the defendant of the use of knife by him. The trial judge did not warn the jury of the danger of accepting this evidence without corroboration. The

Defendant's conviction was affirmed by the court of Appeal. On Appeal to the House of Lords, it was held that in a criminal trial, where a person who is an accomplice gives evidence for the prosecution, it is the duty of the court to warn that although it may convict upon this evidence it is dangerous to do so unless it is corroborated. Secondly the court stated that this rule, although a rule of practice now has the force of law and thirdly where the judge fail to warn as above, conviction will be quashed. It is in this case where the court defined as to who an accomplice is. The court addressed its mind to the question of who is an accomplice and opined that from the cases

1. Parties who are participes criminis in respect of the actual crime charged whether as principals or accessories before or after the fact.
2. Receivers of stolen goods : **R V Jennings** (1912) 7 CAR 242
3. Accomplices, parties of another offences committed by the accused in respect of which evidence is admitted under the similar evidence rule. **R. v Farad** (1945) 30 CAR 168

R V Moorings

R V Hasham Jiwa – these cases are to the effect that an agent provocateur is not an agent i.e. a person sent by the police as an agent provocateur is not an accomplice and their evidence does not require corroboration.

What evidence amounts to corroboration?

It has to be relevant and admissible

It has to be independent

Has to implicate the accused or link the accused with the offence – visit the case of **R v Baskerfield**.

The requirement of corroboration warning in the case of accomplice evidence extends to matrimonial evidence **Galler V. Galler** which held that in divorce proceedings an adulterer who gives evidence of his own adultery is in the same position as an accomplice in a criminal case and hence the requirement for corroboration.

Wilson Kinyua & Another V. R (1980) KLR

The Appellant and another person were charged with murder. Kinyua denied involvement but the second appellant confessed to his guilt and stated that Wilson Kinyua was also involved. At the trial, the second Appellant objected to the admission of the confession after a trial within a trial the 2nd Appellant confession was admitted even though the maker had disowned it earlier. Kinyua was convicted on the basis of the confession even though the trial court did not get corroboration for the confession. On Appeal, the court held that the 2nd Appellant confession was accomplice evidence

which needed corroboration. The court went on to say that repudiated confessions should not form the basis of conviction without corroboration.

Rwebangira v Republic

[1975] 1 EA 94 (HCT)

Editor's Summary

The appellant was charged and convicted of stealing by servant. It was alleged that he converted his employer's cheques and deposited them in the bank. There was no evidence that he had received the proceeds of those cheques. Photocopies were admitted on a statement that the originals had been lost. **Held –**

(i) the loss of original documents must be proved and a finding of fact made by the trial court;

(ii) secondary evidence was not properly admitted in this case;

(iii) an appellate court cannot act on the uncorroborated evidence of an accomplice if the trial court has not made a finding on his credibility;

As a matter of law the evidence of an accomplice is admissible but as a matter of practice it is now established that accomplice evidence should not be acted upon in the absence of corroboration unless the court has first addressed itself to the danger of acting on such evidence and is convinced as to the credibility of the witness

Davies v Director of Public Prosecutions

In July, 1953, a number of youths, including the appellant, attacked four other youths, including B. During the attack a knife was used and subsequently B died of wounds. The appellant and five others, including L, were indicted for the murder of B, but at the trial the Crown offered no evidence against L and three others, and the jury returned a formal verdict of —Not Guilty of murder in respect of them. At the trial of the appellant and the fifth youth the jury disagreed. Later no evidence was offered against the fifth youth, and he was found —Not Guilty of murder. At the second trial of the appellant L was called as a witness for the prosecution. In his summing-up the trial judge did not warn the jury that L's evidence was, or should be treated as, the evidence of an accomplice.

Held – In a criminal trial, where a person who was an accomplice gave evidence on behalf of the prosecution, it was the duty of the judge to warn the jury that, although they might convict on his evidence, it was dangerous to do so unless it was corroborated; this rule, although a rule of practice, now had the force of a rule of law and where the judge failed to warn the jury in accordance with it, the conviction would be quashed, even if, in fact, there was ample corroboration of the evidence of the accomplice, unless the appellate court could the proviso to s 4(1) of the Criminal Appeal Act, 1907; a person called as witness for the prosecution was to be treated as an accomplice if he was *particeps criminis* in respect of the actual crime charged in the case of a felony; L, if he was to be an accomplice at all, had to be an accomplice to the crime

of murder, and, as there was no evidence that L knew that any of his companions had a knife, he was not an accomplice in a crime which consisted in its felonious use; and, therefore, it was not necessary for the trial judge to give a warning to the jury.

Per curiam: In two cases persons falling strictly outside the ambit of the category of particeps criminis have, in particular decisions, been held to be accomplices for the purpose of the rule: viz, (i) receivers have been held to be accomplices of the thieves from whom they receive goods on a trial of the latter for larceny (*R v Jennings* (1912) (17 Cr App Rep 242); *R v Dixon* (1925) (19 Cr App Rep 36)); (ii) when X has been charged with a specific offence on a particular occasion, and evidence is admissible, and has been admitted, of his having committed crimes of the identical type on other occasions, as proving system and intent and negating accident: in such cases the court has held that in relation to such other similar offences, if evidence of them were given by parties to them, the evidence of such other parties should not be left to the jury without a warning that it is dangerous to accept it without corroboration
NEED FOR REFORM

The requirement for corroboration in this area might sometimes lead to the acquittal of offenders since this evidence is referred to as one of the worst kind. Accomplice evidence should be admitted where it is not challenged by the offender.

Sexual offences

The evidence of the complainant/ victim must be corroborated in these offences as a rule of judicial practice. In E.A, the rule was laid down in:

Chila v R [1967] EA 722

Held: The Judge should warn assessors and himself of the danger of acting upon the uncorroborated evidence of the complainant. Having done so, he may not convict in the absence of corroboration if he is satisfied that there has been no failure of justice.

Rationale for requiring corroboration in sexual offences

According to Glanville Williams (1962) CLR 662, there is a sound reason for this requirement because sexual cases are particularly subject to the danger of deliberately false charges resulting from sexual neurosis, fantasy, jealousy, spite or simply a girl's refusal to admit that she consented to an act of which she is now ashamed. Wigmore on Evidence gives a similar opinion.

What constitutes corroboration in sexual offences?

Medical reports or any other evidence e.g. state of the complainant... distressed condition, e.g. torn clothes, beaten body, etc. If the complainant immediately reported the assault, it can be a part of the corroboration. Courts have held that the best corroborative evidence is medical evidence, as to whether or not there was defilement,

rape, etc. Sometimes, a semen test is done and if there are deposits in the complainant, court may use this as corroborative evidence. It is mandatory, especially when the accused is in custody, to submit to medical examination. **Telesfora Alex v R**

Ngobi v R [1953] 20 EACA 56

Facts: A small girl was defiled and in the course was also infected with an STD. The accused denied any knowledge of the child. Medical examination was done and found the child to be infected with the same strain of STD as the accused.

Held: The medical evidence was good corroborative evidence that he had defiled the girl.

Kongwea V R

The complainant was a middle aged lady who gave evidence that while she was going home, she was ambushed and raped. After the incident she said that the rapist fell asleep and she escaped while the rapist was sleeping and went to complain to her sister, the sister said that when the complainant came to her, she was trembling, had grass on her hair and she gave a description of the accused including the clothes he wore and a scar he had on the thigh whereupon the accused was arrested and charged. He was convicted and on appeal the question was whether there was sufficient corroboration. The court held that there was no sufficient corroboration but that it would sustain the conviction because the complainant appeared a truthful witness.

Njuguna Wangurimu V. R

The complainant here was a young girl who had gone to fetch firewood when she was raped. She testified that prior to the incident that she was a virgin. There was medical evidence of blood on her petticoat and the shorts of the accused person had some blood with traces of semen. There was no evidence that the blood on the accused shorts was the same group as that on the petticoat. A medical examination on the girl showed that the complainant had been used to having sex, contrary to her assertion that she was a virgin. The question was whether there was sufficient corroboration. The court held that there was insufficient corroboration of the complainant's evidence and consequently the court could not convict.

R V. Ogendero (1940) 10 KLR 25

Where a young gal was found to suffer from the same sexually transmitted disease as the alleged rapist it was held that that medical evidence was sufficient corroboration of the assertion that one was raped.

Margaret V. R (1976) KLR 267

Where it was held that though it is not a rule of law that a person charged with a sexual offence cannot be convicted on the uncorroborated evidence of a complainant, it has long been the custom to look for and require corroboration before a conviction for such an offence is recorded.

Chila and another v Republic [1967] 1 EA 722 (CAN)

The appellants were convicted of rape on the uncorroborated evidence of the complainant without the trial judge in his summing up or his judgment making any mention of the desirability of corroboration.

Held – The judge should warn the assessors and himself of the danger of acting on the uncorroborated testimony of the complainant but having done so he may convict in the absence of corroboration if he is satisfied that her evidence is truthful. If no such warning is given, then the conviction will normally be set aside unless the appellate court is satisfied that there has been no failure of justice.

Katumba v Uganda [2000] 2 EA 395 (SCU)

On 8 March 1997 at about 3:00 pm, the complainant was walking along a village path when she noticed the Appellant following her. He ran after her and demanded to have sex. She refused and the Appellant dragged her into some bushes a few metres from the path where he forcefully raped her. During the rape, the complainant raised an alarm which was responded to by two persons. The Appellant ran away, but was later arrested and charged with rape contrary to sections 117 and 118 of the Penal Code. During trial the complainant testified that the Appellant penetrated her during rape. The doctor who examined the complainant after the rape did not give evidence. One of the persons who answered to the complainant's alarm testified that he recognised the Appellant at the time of the offence and in fact saw him between the open legs of the complainant. The High Court convicted and sentenced the Appellant of rape. His appeal to the Court of Appeal was dismissed and he appealed to the Supreme Court on the ground that the Court of Appeal did not re-evaluate the evidence and had therefore arrived at the wrong conclusion. During the appeal, the Appellant's advocate submitted that there was no corroboration of the complainant's testimony that the Appellant had penetrated her and therefore a major ingredient of rape had not been satisfied. The advocate argued that it was a mandatory requirement that the evidence of penetration by the complainant be corroborated.

Held – A court was not prevented from convicting a person of a sexual offence on the evidence of the complainant alone, if she was believed by the court to be a truthful witness, although the practice in such a case was that the complainant's evidence be corroborated. It was generally unsafe to base a conviction on the evidence of a complainant only, in sexual offences; *George Bangirana v Uganda* [1975] HCB 361 cited with approval. Corroboration was additional independent evidence which connected

the accused with the crime, confirming in some material particular not only the evidence that the crime had been committed, but also that the accused had committed it. Corroboration was therefore in relation to the offence of rape as a whole and not the ingredient of penetration only.

Kibale v Uganda [1999] 1 EA 148 (SCU)

The Appellant was tried before the High Court on a charge of defilement. The prosecution alleged that on 16 July 1993, the Appellant unlawfully had carnal knowledge of the complainant, a girl of less than 18 years of age. At his trial, the complainant testified that on the material day, she left her home early in the morning to walk to school. On her way there, she met the Appellant who threw her down and forcefully had sexual intercourse with her. After the assault she continued her journey to school, attended school the whole day and returned home in the evening. When she got home she reported the matter to her mother. She was then taken to a doctor who examined her and testified at the trial that he had found a two day old laceration of her hymen. The complainant's mother reported the matter to the police and the Appellant was subsequently arrested. In his defence, given in an unsworn statement, the Appellant denied committing the offence and claimed that on the day in question he had woken up at 5:00am and carried his brother-in-law on a bicycle to board a taxi to Kampala. He had returned home at 8:30am and thereafter gone to load coffee at Kinyenyi Station. His brother-in-law testified in support of the appellant. The Appellant was convicted and sentenced to 10 years imprisonment. The Appellant appealed on the grounds, *inter alia*, that the prosecution had failed to prove the elements of the offence of defilement and that the trial Judge erred in rejecting his alibi. Counsel for the Respondent supported the conviction, contending that the medical evidence as well as that of the complainant clearly showed that sexual intercourse had occurred. He also contended that identification had been satisfactorily proved and that the Judge had been justified in rejecting the Appellant's alibi.

Held – In order to prove the commission of the offence of defilement, three facts had to be established: firstly, that there had been penetration of the female sex organ by the male sex organ, secondly, that the female was below the age of 18 years, and thirdly, that it was a male person who had engaged in the sexual intercourse. In cases of a sexual nature, the court had to warn itself of the danger of acting on the uncorroborated testimony of a complainant but having done so, it could convict in the absence of corroboration if it was satisfied that the complainant's evidence was truthful; *Chila and another v Republic* [1967] EA 722 followed. Here, the prosecution case, in the form of the complainant's testimony, was corroborated by the medical evidence, and proved beyond reasonable doubt that the complainant had had sexual intercourse with a man on 16 July 1993. With regard to the complainant's age, there was ample evidence justifying the trial Judge's finding that the complainant was under 18 years of age at the material time and there were no grounds for faulting her in this regard. The trial Judge's

failure to warn herself of the requirement for corroboration caused no failure of justice in view of her warning to the assessors of the requirement for corroboration implicating the accused.

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NEED FOR REFORM

Corroboration has become the rule of law.

The rule is that in cases where the accused is charged with a sexual offence, the jury should be directed that it is not safe to convict upon the uncorroborated testimony of the complainant but that if they are satisfied of the truth of such evidence, they may after paying attention to that warning nevertheless convict. The corroboration requirement in sexual offences stems from the fact that the charge is easy to make and difficult to refute, there is the very present danger that the complainant may make a false accusation owing to sexual neurosis, jealousy, fantasy, spite or a girl's refusal to admit that she consented to an act which she is now deeply ashamed. (the effect is to protect the perpetrator against the would be malicious accusations levelled against a defenceless male although while trying to do this you have more guilty people going free.

Dying Declarations;

These must be corroborated as a matter of judicial prudence.

Migezo Mibinga v Uganda [1965] 1 EA 71 (CAK)

The appellant was convicted of manslaughter and the only evidence implicating the appellant consisted of repeated statements made by the deceased to several persons soon after he was discovered lying injured that it was the appellant who had beaten him. The Chief Justice considered with care the circumstances under which the statements were made and looked for corroboration which he found in the conduct of the appellant when accused by the deceased in the presence of other persons of having beaten him. What happened was that the appellant was brought to where the deceased was lying, the deceased pointing at the appellant had said —. . . You are the person who had beaten me and the appellant made no reply. On appeal,

Held –

- (i) although there is no rule of law that to support a conviction there must be corroboration of the statements made by the deceased person as to the cause of his death, it is unsafe to base a conviction solely on them;
- (ii) the probative force of a statement as to the cause of his death by a person since deceased is not enhanced by its being made in the presence of the accused unless by his conduct, demeanour, etc., the accused has acknowledged its truth and consequently the trial judge should expressly state whether he is satisfied or not that there was such acknowledgement;

Terikabi v Uganda [1975] 1 EA 60 (CAK)

The appellant was convicted of murder on the basis of the dying declaration of the deceased. The trial judge and assessors found corroboration in the subsequent conduct of the appellant. On appeal it was contended that the dying declaration was inadmissible as it did not deal with the circumstances of the attack and that there was no sufficient corroboration. **Held –**

- (i) a dying declaration need deal only with the cause of death or with the circumstances leading to death;
- (ii) there must be satisfactory corroboration of a dying declaration (*Akumu v. R.* (1) approved); (iii) on the facts the court's finding on corroboration would be upheld.

CONFESSIONS

Tuwamoi v Uganda [1967] 1 EA 84 (CAK)

During the night of November 2, 1964, the appellant allegedly came to the home of the deceased, and killed her with his spear. The deceased's daughter, who was awakened by the noise, found her mother dying, and the judge accepted that the deceased made a dying declaration to her daughter implicating the accused. The accused made a statement in the nature of a confession, but next day, on November 4, 1964, made a further statement which was a complete denial of the crime. Only the first statement was tendered by the prosecution in the lower court. **Held –**

- (i) the dying declaration should have been tested for reliability as to identification;
- (ii) a trial court should accept with caution a confession which has been retracted or repudiated or both retracted and repudiated and must be fully satisfied that in all the circumstances of the case that the confession is true;
- (iii) if the accused makes more than one statement to the police, the prosecution should tender all statements made by the accused. as a matter of practice or prudence the trial court should direct itself that it is dangerous to act upon a statement which has been retracted in the absence of corroboration in some material particular, but that the court

might do so if it is fully satisfied in the circumstances of the case that the confession must be true.

Identification;

In all cases, court requires corroboration, especially in the identification of a single witness under difficult conditions, e.g. robbery at night.

Abdulla Bin Wendo v R is the locus classicus.

Evidence of a child of tender years;

According to the Law, the unsworn evidence of a child of tender years requires corroboration. Even judicial practice requires this.

Oloo s/o Gai v R [1960] EA 87

Held: The judge relied on the evidence of a 12 year old child to convict the appellant for murder. He did not warn himself of the need to corroborate the child's evidence. The Court of Appeal held that it was erroneous for the judge to rely on the uncorroborated evidence of the child, even if it had been sworn evidence.

This is more so if the child is a prosecution witness. The rationale for this according to Glanville Williams is that children can easily be coached therefore court must treat their evidence cautiously; children are impressionable and susceptible; they are easily fooled, sometimes live in a make-believe world; they are ego-centric and only slowly learn the duty to tell the truth. A child's power of observation and reasoning is far below that of an adult therefore their evidence must be approached with great care.

SIKIA

*Knowledge is like a mountain, you must climb to the top to reach.
The Jesuits say that MORE IS NOT ENOUGH.*

LOW